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## FULL TEXT OF THE INITIATIVE MEASURE

The people of the City of Walnut Creek do ordain as follows:

**SECTION 1. Benefits, Purpose and Intent of This Initiative.**

This Initiative shall be known as the Walnut Creek Senior Housing Transit Village Initiative.

The purpose of this Initiative is to amend the Walnut Creek General Plan, North Downtown Specific Plan, Zoning Ordinance and Zoning Map to replace certain office land use regulations with ones that prioritize senior housing, as described below.

This Initiative will pave the way for more than 200 units of much-needed senior housing, along with community-serving retail businesses, in the Initiative Amendment Area, a 2.4-acre site located at the northeast corner of North California Boulevard and Ygnacio Valley Road, across the street from the Walnut Creek BART station. It will also further Walnut Creek Housing Element's goal of providing a range of housing opportunities for seniors.

*Senior Housing*. Walnut Creek is a wonderful place to call home because of our amazing climate, varied retail and dining options, abundant hiking and walking opportunities, acclaimed medical facilities, substantial parks and open space, award-winning schools, and robust transit options. A large share of the population has lived here for years, raising families, and is growing older in that family housing. Walnut Creek needs to do more to meet the special housing needs of our seniors, who now represent about half of our community, with many looking for quality downsizing options. Allowing over 200 new senior housing units downtown, near BART, will create opportunities for these seniors to age in place and stay connected with their families, friends, doctors, communities, and cultural opportunities throughout the Bay Area.

*Location*. The Initiative Amendment Area's location next to the Walnut Creek BART station and downtown area is ideal for senior housing. It enables seniors to take BART to Lamorinda, Pleasant Hill, Rockridge, San Francisco, the SFO and Oakland airports, and beyond. Seniors will benefit from nearby community-based shopping, restaurants, and services, allowing a walkable, mixed-use development that will promote health and wellness for residents. The location also allows easy access to the Downtown Trolley, which provides free hop on, hop off service between various shopping, restaurant and entertainment destinations in downtown Walnut Creek, and other public transit options. The direct connection to public transit and walkability will make it easy for people to get to and from their destinations without driving.

*Business Uses*. This Initiative also allows community-serving businesses, such as an accessible public market, for shopping, dining, entertainment, and other convenient

services at future mixed-use residential buildings. The Initiative will provide opportunities for integration among a variety of retail and food-oriented businesses and senior residences in a mixed-use center near BART, which will serve the residents of the senior housing, occupants of the adjacent existing office buildings, and occupants of nearby future development proposed in the City's plans. Existing and future businesses will be bolstered by the evening and weekend activity that accompanies residential development.

*Implementation of Vision Reflected in the Walnut Creek General Plan.* The Initiative implements and promotes the following provisions, among others, of the Walnut Creek General Plan, and results in an internally consistent plan:

- Chapter 1 (Introduction), Vision, stating that "The 2025 Walnut Creek Vision emphasizes the quality of life in the community. The vision sees Walnut Creek as a city that:"
    - "Supports a vital and diverse economy, which fosters entrepreneurship, economic opportunity, and a healthy mix of employment opportunities."
    - "Creates and sustains a highly livable built environment that maintains its traditional downtown and combines retail, restaurants, arts, entertainment, and housing in an environment that is vibrant, active, and accessible."
- Chapter 2 (Quality of Life), Goal 11, Policy 11.2 to "Promote health and fitness for all members of the community through healthy community design. "
- Chapter 4 (Built Environment), Goal 2, Policy 2.1, Action 2.1.1 to "Prepare zoning regulations which facilitate the development of high density multifamily housing in areas with good access to transit, and areas that are located within walking distance of a high number of jobs and services within the Core Area."
- Chapter 4 (Built Environment), Goal 3 to "Encourage housing and commercial mixed-use development in selected locations that enhances pedestrian access and reduces traffic".
- Chapter 4 (Built Environment), Goal 3, Policy 3.1 to "Create opportunities for mixed-use developments."
- Chapter 4 (Built Environment), Goal 3, Policy 3.1, Action 3.1.1 to "Encourage mixed-use development at and near the Walnut Creek and Pleasant Hill BART Stations."

- Chapter 4 (Built Environment), Goal 10, Policy 10.1, Action 10.1.1 to "Apply land use designations that encourage transit-oriented development around the BART stations and in the Core Area."

- Chapter 4 (Built Environment), Goal 14 to "Create livable, well-designed, mixed-use communities."

- Chapter 4 (Built Environment), Goal 31, Policy 31.2, Action 31.2.3 to "Promote residential development and redevelopment opportunities near transit and commercial centers, and encourage walking, bicycling, and transit use."

- Housing Element Chapter 8 (Housing Plan), Goal H-1, Policy H-1.2 to "encourage a mix of land uses and residential densities in the Downtown Core Area to increase the supply of housing."

- Housing Element Chapter 8 (Housing Plan), Goal H-1, Policy H-1.3 to "encourage housing and commercial mixed-use development in selected locations that enhances pedestrian access and reduces traffic, particularly in the Core Area, and near public transit."

- Housing Element Chapter 8 (Housing Plan), Goal H-3, Policy H-3.1 to "prioritize the development of housing that meets the needs of special needs groups including seniors . . . ."

This Initiative applies the Mixed Use – Residential Emphasis (MU-R) General Plan land use designation to the Initiative Amendment Area. It amends the MU-R designation to allow a greater proportion of a mixed-use project to be devoted to business uses in the Initiative Amendment Area, which better suits the site and its proximity to BART and transportation infrastructure.

*Implementation of the Vision Reflected in the North Downtown Specific Plan.* The Initiative also amends the North Downtown Specific Plan to change the land use category applicable to the Initiative Amendment Area from "Office" to "Mixed Use – Residential Emphasis," matching the General Plan. This Initiative promotes the following North Downtown Specific Plan provisions, among others:

- LU 1.2 "Diverse mix of land uses. Encourage a rich mix of land uses including office, retail, housing, services, community facilities, maker space, auto sales, and lodging."

- LU 1.9 "Services and amenities. Support an increasing range of services, retail shops, community facilities, public outdoor spaces, and other neighborhood amenities to serve new and existing residents and workers."

- LU 1.12 "New plazas and public space. Encourage a variety of public outdoor spaces, pedestrian-oriented streetscapes, and gathering spaces to meet the needs of new and existing residents, visitors, workers and businesses . . . ."

- LU 1.13 "Evening and weekend activity. Encourage uses that bring evening and weekend activity, such as retail shopping and services; food stores; restaurants and cafes; entertainment venues; health clubs; community facilities; outdoor public spaces; and other similar uses."

*Creation of New Zoning District that Allows Senior Housing and Commercial.* This Initiative amends the Zoning code to create a new Zoning District called "Mixed Use – Residential Senior & Commercial" and rezones the Initiative Amendment Area to that new zoning district. The new zoning district regulations are set forth in Exhibit C-3 (new Walnut Creek Municipal Code sections 10-2.2.2401 through 10-2.2.2409). Those new regulations limit the land uses to senior housing and commercial uses compatible with senior housing. The land uses authorized by the new zoning district implement and are compatible with the objectives, policies, general land uses and programs specified in the General Plan and the North Downtown Specific Plan, as amended by this Initiative.

*Local and State Laws.* The General Plan, Specific Plan and Zoning plans and provisions enacted and readopted by this Initiative establish the Walnut Creek regulations applicable to development. As is the case with any site on which residential uses are allowed, additional density and waivers of regulations, including Measure A height limits, may be mandated by the State Density Bonus Law, California Government Code sections 65915 – 65918, in certain circumstances.

*Quotation Format.* Provisions from the General Plan, North Downtown Specific Plan, and Walnut Creek Municipal Code are reproduced in this Initiative either enclosed in quotation marks or set forth in indented block quotes. Underlined text is new, added text, text in ~~strikethrough font~~ is deleted, and ellipses within quotations indicate there is text in the plan or ordinance being quoted that is not being amended or readopted by this Initiative. [*Italicized text in brackets*] within a quotation indicates the nature of the text that is not included within the quotation as it is not relevant, and is not amended or readopted by this Initiative.

**SECTION 2. Amendment to the Walnut Creek General Plan.**

This section of the Initiative amends and readopts provisions of the Walnut Creek General Plan.

**A. General Plan Land Use Map Amendment.**

The General Plan Land Use Map is amended to change the land use designation applied to the Initiative Amendment Area from "Office (OF)" to "Mixed Use – Residential

Emphasis (MU-R)." Exhibit A-1 depicts the relevant portion of the General Plan Land Use Map as of the Filing Date. Exhibit A-2 depicts the relevant portion of the General Plan Land Use Map as amended by this Initiative.

Exhibit A-1 is not incorporated by reference into this Initiative, is not enacted or readopted by this Initiative, but is provided for informational purposes. The only aspect of Exhibit A-2 that is enacted by this Initiative is the portion specifying that the MU-R land use designation applies to the Initiative Amendment Area, and Exhibit A-2 is incorporated by reference into this Initiative only to the extent it specifies application of the MU-R land use designation to the Initiative Amendment Area.

### B. Chapter 4, "Built Environment," MU-R Designation.

The description of the Mixed Use – Residential Emphasis land use designation in Chapter 4 of the General Plan is amended as follows:

> **Mixed Use–Residential Emphasis (MU-R), FAR 1.0 to 2.8, or as specified in the North Downtown Specific Plan**. Intended to encourage a combination of ground floor retail with office and/or residential uses above the ground floor, but on land zoned MU-RSC, the MU-R category is intended to encourage but not require retail in the garage/basement, on the two ground floors and the top floor with residential on other floors. A mix of residential and community facility uses is also allowed. However, residential must be the primary use, and if the accompanying mixed use is a commercial use, then the commercial component is limited to a maximum FAR of 0.3 in most areas, and an FAR of 0.6 on one site as stated in the North Downtown Specific Plan. In most locations, the allowable FAR is 1.5-2.8, which can translate to a population of approximately 47.9 to 159 persons per net acre. In areas that are outside the Core Area, the FAR is 1.0 to 2.0, which can translate to a population of approximately 31.9 to 63.9 persons per net acre. For land subject to the North Downtown Specific Plan that allows an FAR higher than 2.8 on land designated MU-R, the population density is established by the density per net acre allowed by applicable zoning, pursuant to the General Plan methodology of 2.54 persons for single-family homes and 1.59 persons for multifamily units. The MU-RSC zoning district, at 1 unit per 425 SF of net lot area, can translate to a population of approximately 163 persons per net acre.
>
> The MU-R designation was applied to a 2.4-acre site located at the northeast corner of the intersection of Ygnacio Valley Road and North California Boulevard by the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026. That initiative amended the General Plan, the North Downtown Specific Plan, and the Zoning Code to enable mixed use,

senior residential & commercial development and enact policies and regulations related to that development. Absent a vote of the people or city approval of a landowner application, no subsequently-enacted provision of the General Plan (including the Housing Element), any applicable specific plan, zoning or any other city plan, regulation, guideline or policy, shall reduce the development potential allowed by the initiative for that site, regardless whether the limit or reduction would otherwise occur by direct regulation of such things, or by indirect regulations including but not limited to requirements related to setbacks, step-backs, view corridors, rights of way, dedications, legal nonconforming status, easements, access, access location, parking, open space, or phasing or timing of development, as such regulation would be inconsistent with the purpose and intent of the Initiative.

### C. Chapter 4, "Built Environment," Policy 9.1.

Policy 9.1 in Chapter 4 is amended as follows:

Policy 9.1. Mete out the amount of commercial development allowed annually, and exempt development allowed by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026 from the commercial development metering program.

### D. Housing Element, Chapter 3, "Housing Constraints," MU-R Definition (Page 3-15).

The following text in Chapter 3, "Housing Constraints," of the Housing Element is amended as follows:

**Mixed-use – Residential Emphasis (MU-R) (Floor Area Ratio (FAR) 1.5 to 2.8 or as specified in the North Downtown Specific Plan)**: This land use is intended to encourage a combination of ground floor retail with office and/or residential uses above the ground floor, but on land zoned MU-RSC, the MU-R category is intended to encourage but not require retail in the garage/basement, on the two ground floors and the top floor with residential on other floors. Residential must be the primary use with commercial uses allowed only to a maximum FAR of 0.3 in most areas, and to 0.6 for a 2.4-acre site located near the Walnut Creek BART station, as stated in the North Downtown Specific Plan.

The MU-R designation was applied to a 2.4-acre site located at the northeast corner of the intersection of Ygnacio Valley Road and North California Boulevard by the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026. That initiative amended the General Plan, the North Downtown Specific Plan, and the Zoning Code to enable mixed use,

senior residential & commercial development and enact policies and regulations related to that development. Absent a vote of the people or city approval of a landowner application, no subsequently-enacted provision of the General Plan (including the Housing Element), any applicable specific plan, zoning or any other city plan, regulation, guideline or policy, shall reduce the development potential allowed by the initiative for that site, regardless whether the limit or reduction would otherwise occur by direct regulation of such things, or by indirect regulations including but not limited to requirements related to setbacks, step-backs, view corridors, rights of way, dedications, legal nonconforming status, easements, access, access location, parking, open space, or phasing or timing of development, as such regulation would be inconsistent with the purpose and intent of the Initiative.

### E. Housing Element, Chapter 3, "Housing Constraints," Table 3-3, "Land Use and Zoning Categories Permitting Residences" (Page 3-16 to 3-17).

Table 3-3 in Chapter 3, "Housing Constraints," of the Housing Element, at pages 3-16 to 3-17, lists the zoning districts (referred to as "zoning categories" in Table 3-3) that permit residences. For informational purposes, the text that precedes Table 3-3, which is not enacted or readopted by this Initiative, is as follows:

> The correlation between Walnut Creek General Plan land use designations and zoning districts is shown in Table 3-3, Land Use and Zoning Categories Permitting Residences. The Base Zoning District Regulations summarized below include: Single-Family Residential District (R), Single-Family High, Planned Development District 1 (SFH-PD1); Duplex Residential District (D-3), Multiple Family Residential Districts (M), High Density Residential Planned Development District (M-H-D), Pedestrian Retail District (P-R), Central Retail District (C-R), Office Commercial District (O-C), Mixed-use Planned Development District (M-U), and the Community Commercial District (C-C).

Table 3-3 is amended to add the following text to the row that begins with "MU-R" and to supplement the note regarding the source for Table 3-3, as follows:

**Table 3-3. Land Use and Zoning Categories Permitting Residences**

| GENERAL PLAN LAND USE CATEGORY | | DENSITY (DU/NET AC) | ZONING CATEGORIES* | TYPICAL RESIDENTIAL TYPE(S)* |
|---|---|---|---|---|
| SFVL | Single-Family Very Low | 0.1 to 1 | R-40 | Single-family homes |
| SFL | Single-Family Low | 1.1 to 3 | R-15, R-20 | Single-family homes |
| SFM | Single-Family Medium | 3.1 to 6 | R-8, R-8.5, R-10, R-12 | Single-family homes |
| SFH | Single-Family High | 6.1 to 9 | SFH-PD1 | Single-family homes on smaller lots |
| MFL | Multifamily Low | 6.1 to 14 | SFH-PD1, D-3, M-3 | Single -family and duplex homes including zero lot line and patio homes, and attached townhomes |
| MFM | Multifamily Medium | 14.1 to 22 | M-2, M-2.5 | Multifamily homes including condominiums and/or low-rise apartments |
| MFMH | Multifamily Medium High | 22.1 to 30 | M-1.5 | Multifamily homes, such as two-story (or higher) apartments or condominiums |
| MFVH | Multifamily Very High | 30.1 to 50 | M-1 | Multistory, high-density residential, such as conventional apartment complexes |
| MFD | Multifamily, Downtown | 40.0 to 90.0 | M-0.75 | High-density residential neighborhoods consisting of apartments and condominiums |
| MFSH | Multifamily Special High | 50.1 to 100 | M-H-D | Higher density residential for downtown living |
| MU-R | Mixed-use – Residential Emphasis | FAR 1.5 to 2.8, or as specified in the North Downtown Specific Plan. | MU-R, MU-RSC | Higher density multifamily above the ground floor |

| GENERAL PLAN LAND USE CATEGORY | | DENSITY (DU/NET AC) | ZONING CATEGORIES* | TYPICAL RESIDENTIAL TYPE(S)* |
|---|---|---|---|---|
| MU-C | Mixed-use – Commercial Emphasis | FAR 1.0 to 2.0 | MU-C | Multifamily apartments and condominiums |
| MU-D | Mixed-use-Downtown | FAR 1.0 to 3.0 | MU-D | Multifamily apartments and condominiums |
| MU-GT | Mixed-use – Golden Triangle | FAR 1.5 to 2.5 | M-U | High-intensity apartments and condominiums |

**Source:** City of Walnut Creek 2021, as amended by initiative in 2026.
*ADUs and SB 9 units are permitted in accordance with State law.

### F. Housing Element, Chapter 3, "Housing Constraints," Maximum Floor Area Ratio (Page 3-23).

The following text in Chapter 3, "Housing Constraints," of the Housing Element at page 3-23 is amended as follows:

> 3.3.3.5 **Maximum Floor Area Ratio.** The City does not have maximum FAR requirements for residential uses in residential zones. However, the Land Use Element and specific plans (notably the North Downtown Specific Plan and the West Downtown Specific Plan) limits FAR in the mixed-use zones. Generally, the total FAR allowed per lot includes the floor area of residential units. Note that the upper limits of the ranges listed below are only allowable in exchange for community benefits, except as specified in the North Downtown Specific Plan (see Figures 3-1, Maximum Height and FAR in the North Downtown Specific Plan, and 3-3, Maximum FAR in the West Downtown Specific Plan):
>
> • MU-R: 1.5 to 2.8, with commercial uses allowed only to a maximum FAR of 0.3, except as the base and maximum FARs, and the maximum FAR for commercial uses are specified in the North Downtown Specific Plan.
>
> • MU-C: 1.5 to 4.5
>
> • MU-D: 1.5 to 3.0

## G. Housing Element, Chapter 3, "Housing Constraints," Table 3-9, "Multifamily Residential Development Standards in Commercial and Mixed-Use Zones" (Page 3-29)

Table 3-9 in Chapter 3, "Housing Constraints," of the Housing Element is amended to add a column for the Mixed Use – Residential Senior & Commercial zoning district enacted by this Initiative. Only the right-hand column shown in Table 3-9 below is enacted by this Initiative; the other columns are provided for informational purposes.

**Table 3-9. Multifamily Residential Development Standards in Commercial and Mixed-Use Zones**

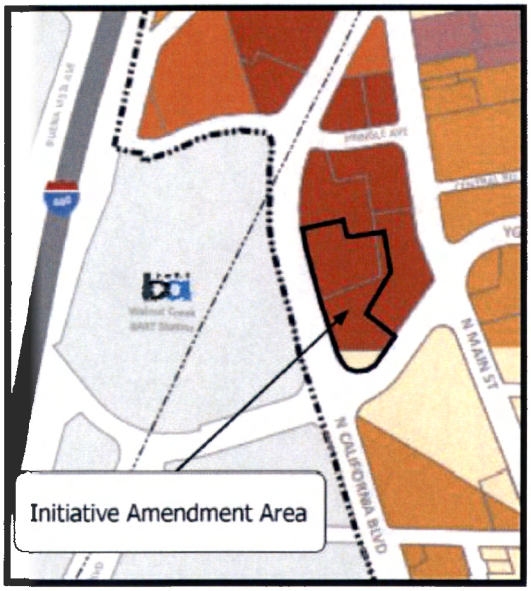
| Standard | M-U Mixed-Use Planned Development District | MU-C Commercial Mixed-Use District | MU-R Residential Mixed-Use District | MU-D Downtown Mixed-Use District | MU-RSC Mixed Use Residential Senior & Commercial District |
|---|---|---|---|---|---|
| Minimum Lot Area (sq. ft.) | 40,000 | 10,000 | 10,000 | 10,000 | 10,000 |
| Minimum Front Setback | For the first 40 vertical feet of the building:<br>• Core Area retail streets: 15 ft. from curb face<br>• Non-Core Area retail streets: 10 ft. from curb face<br>Above the first 40 vertical feet of a building: 5 ft. setback from façade | | | | Front setbacks are generally 5-15 feet, subject to the requirements stated in the North Downtown Specific Plan. |
| Minimum Side Setback | None, except in the following conditions:<br>• Abutting residential district: 10 ft. for the first 30 vertical feet; 15 ft. above 30 vertical feet<br>• Dwelling units: 20 ft. outside of a living room window; 10' outside of a bedroom window | | | | No front, rear or side setbacks are required from lot lines in the interior of a block that is surrounded by public streets, as stated in the North Downtown Specific Plan. |

| Standard | M-U Mixed-Use Planned Development District | MU-C Commercial Mixed-Use District | MU-R Residential Mixed-Use District | MU-D Downtown Mixed-Use District | MU-RSC Mixed Use Residential Senior & Commercial District |
|---|---|---|---|---|---|
| Minimum Corner Side Setback | Core Area retail streets: 15 ft. from curb face<br>Non-Core Area retail streets: 10 ft. from curb face | | | | See the North Downtown Specific Plan. |
| Minimum Rear Setback | N/A | None, except in the following conditions:<br>Abutting residential district: 10 ft. for the first 30 vertical feet; 15 ft. above 30 vertical feet<br>Dwelling units: 20 ft. outside of a living room window; 10 ft. outside of a bedroom window | | | None, as set forth in the North Downtown Specific Plan. |
| Maximum Height | Height standards for parcels within North Downtown and West Downtown Specific Plans defer to the standards of those respective documents (see Figures 3-1 to 3-3 below)<br>Parcels which are not within the boundaries of the North Downtown and West Downtown Specific Plans defer to Sheet 2 of the City's official Zoning Map, which regulates building height independent of the zoning districts. | | | | See the North Downtown Specific Plan. |
| Maximum Density | Maximum residential density is determined by the Planning Commission when making a recommendation to the City Council on the planned development permit. | 49.8 DUA | 102.5 DUA | 58.1 DUA | 1 dwelling unit per 425 sq. ft. of net lot area, |
| Maximum Lot Coverage | N/A | N/A | N/A | N/A | N/A |
| Maximum Floor Area Ratio | FAR standards for parcels within North Downtown and West Downtown Specific Plans defer to the standards of those respective documents (see Figures 3-1 to 3-3 below) | | | | See the North Downtown Specific Plan. Maximum |

| Standard | M-U Mixed-Use Planned Development District | MU-C Commercial Mixed-Use District | MU-R Residential Mixed-Use District | MU-D Downtown Mixed-Use District | MU-RSC Mixed Use Residential Senior & Commercial District |
|---|---|---|---|---|---|
| | Parcels which are not within North Downtown and West Downtown Specific Plans defer to Chapter 4, Figure 9 (Mixed-use Floor Area Ratios) of the General Plan, or to an applicable specific plan.<br>If the FAR of the parcel is not regulated by Chapter 4, Figure 9 (Mixed-use Floor Area Ratios) of the General Plan, or to any specific plan, the maximum FAR is 1.5. The floor area ratio may not exceed 1.0 on any property with a net lot area less than ten thousand (10,000) square feet. | | | | base FAR is 1.5 and 3.5 |
| Required Off-Street Parking | 1.25 spaces per studio,<br>1.5 spaces per 1 bedroom unit,<br>2 spaces per 2-bedroom unit;<br>2.25 spaces per 2+ bedroom unit.<br>Every dwelling unit is required to have 1 covered space. Parking for senior housing is determined on a case-by-case basis by the City's Transportation Administrator. | | | | See the zoning regulations for the MU-RSC zoning district (beginning with WCMC § 10-2.2.2401). |

## H. Housing Element, Chapter 3, "Housing Constraints," Figure 3-1, "Maximum Height and FAR in the North Downtown Specific Plan" (Page 3-31).

Chapter 3, "Housing Constraints," of the Housing Element contains Figure 3-1, labeled "Maximum Height and FAR in the North Downtown Specific Plan." The relevant portion of the current Figure 3.1, annotated to indicate the location of the Initiative Amendment Area, is as follows:




| Max FAR (base)* | Max Height (base) |
|---|---|
| 1.5 | 35' |
| 1.8 | 45' |
| 1.8 | 50' |
| 2.5 | 70' |
| 2.5 | 35' |
| 2.8 | 50' |
| 3.5 | 89' |

The "Max FAR (base)" and "Max Height (base)" for the Initiative Amendment Area in Figure 3.1 are readopted and therefore subject to the amendment procedures specified in this Initiative.

### I. Housing Element, Chapter 3, "Housing Constraints," Discussion of Prior Development (Page 3-51).

The following text in Chapter 3, "Housing Constraints," Section 3.3.6.2 "Planned Development Permits" of the Housing Element is amended as follows:

> Developments built or proposed in mixed-use zones focusing on residential use (i.e., the MU-R zone) averaged 112 units per acre, or 110% of the permitted density prior to enactment of the Walnut Creek Senior Housing Transit Village Initiative in 2026.

### J. Housing Element, Chapter 3, "Housing Constraints," Table 3-17 (Page -71).

Table 3-17 in Chapter 3, "Housing Constraints," of the Housing Element is amended to add a column for the Mixed Use – Residential Senior & Commercial zoning district enacted by this Initiative. Text relating to numerous existing zoning districts unrelated to this Initiative has been omitted from the quotation of Table 3-17 below and replaced with ellipses in the middle column. That omitted text is not amended or readopted by this Initiative. Only the right-hand column shown in Table 3-17 below is enacted by this Initiative.

**Table 3-17. Permitted Residential Uses by Zone**

| | . . . | Mixed Use-Residential Senior & Commercial (MU-RSC) |
|---|---|---|
| **Residential Use Classifications** | | |
| **Adult Day Care Home** | . . . | N |
| **Congregate Living Facility** | . . . | L |
| **Family Day Care Home** | . . . | N |
| ***Small Family Day Care Home*** | . . . | N |
| ***Large Family Day Care Home*** | . . . | N |
| **Group Residential** | . . . | L |
| **Multiple-Family Residential** | . . . | L |
| **Residential Care Home** | . . . | L |
| **Accessory Dwelling Units** | . . . | N |
| ***Accessory Dwelling Units*** | . . . | N |
| ***Junior Accessor Dwelling Unit*** | . . . | N |
| **Single-Family Residential** | . . . | N |
| **Community Facility Use Classifications** | | |
| **Adult Day Care Facility** | . . . | L |
| **Child Day Care Facility** | . . . | L |
| **Housing for the Homeless/Emergency Shelters** | . . . | N |
| **Residential Care Facility** | . . . | L |
| **Accessory Uses** | | |
| **Accessory Living Quarters** | . . . | N |
| **Accessory Structure** | . . . | L |
| **Accessory Uses** | . . . | L |
| **Home Occupations** | . . . | L |

Key:
P: Permitted use.
L: Use permitted subject to certain limitations.
U: Use permitted with a CUP.
N: Not a permitted use.

### K. General Plan Glossary, Definition of Floor Area, Gross.

The following definition of Floor Area, Gross on page A-7 of the glossary of the General Plan is amended as follows:

> Floor Area, Gross. The total area of all floors in a building as measured to the outside surfaces of exterior walls or to the centerline of common walls, excluding crawl spaces, garages, carports, breezeways, attics without floors, and open porches, balconies, and terraces." (See WCMC, §10-2.1.303, No. 61, but see § 10-2.2.2405 for the definition applicable on land zoned MU-RSC, for additional details.)

### L. General Plan Glossary, Definition of FAR.

The following definition of Floor Area Ratio on page A-7 of the glossary of the General Plan is amended as follows:

> Floor Area Ratio (FAR). The ratio of developed gross floor area to net lot area, both expressed in square feet. (WCMC, §10-2.1.303, No. 63, but see § 10-2.2.2406 for the definition applicable on land zoned MU-RSC.) (Note: FAR is determined by taking the gross floor area permitted on a site and dividing by the total net area of the site, and expressing the result as a decimal to one or two places. In the diagram below, on a site with 10,000 net sq. ft. of land area, a Floor Area Ratio of 1.0 would allow a maximum of 10,000 gross sq. ft. of floor area to be built. An FAR of 0.5 would allow only 5,000 sq. ft. FAR is typically applied on a parcel-by-parcel basis as opposed to an average FAR for an entire land use area or zoning district.) For purposes of calculating FAR on land zoned MU-RSC, the phrases "net area," "net acres," "net lot area," and "net land area" in the General Plan, North Downtown Specific Plan and the Zoning Ordinance shall mean "lot net area" as defined in WCMC, §10-2.1.303, paragraph 122, as amended by the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026, and 'gross floor area" shall have the meaning set forth in WCMC, § 10-2.2.2405.

### M. General Plan Provisions Referring To the North Downtown Specific Plan and Zoning.

The General Plan contains the language quoted below, which refers the reader to the North Downtown Specific Plan and the Zoning that implements that Specific Plan to ascertain certain development standards and policies. This language is amended as set forth below.

### 1. Chapter 4, "Built Environment," Building Setbacks.

The following language in Chapter 4 "Built Environment," Section "3. Building Setbacks" is amended as follows:

> Except where otherwise specified by the West Downtown or North Downtown Specific Plans (as amended by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026), the required minimum dedicated sidewalk width in the Core Area is 10 feet.

### 2. Chapter 4, "Built Environment," Figure 8, "Commercial Floor Area Ratios."

The following language in Figure 8, "Commercial Floor Area Ratios" in Chapter 4, "Built Environment," of the General Plan is amended as follows:

> Refer to the Zoning Ordinance and North Downtown Specific Plan, as amended by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026.

### 3. Chapter 4, "Built Environment," Figure 9, "Mixed Use Floor Area Ratios."

The following language in Figure 9, "Mixed Use Floor Area Ratios" in Chapter 4, "Built Environment," of the General Plan is amended as follows:

> Refer to the Zoning Ordinance and North Downtown Specific Plan, as amended by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026.

### 4. Chapter 4, "Built Environment," Figure 10, "Core Area Height Limits."

The following language in Figure 10, "Core Area Height Limits" in Chapter 4, "Built Environment," of the General Plan is amended as follows:

> Refer to the Zoning Ordinance and North Downtown Specific Plan, as amended by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026."

### 5. Chapter 4, "Built Environment," Figure 11, "Core Area Building Setbacks."

The following language in Figure 11, "Core Area Building Setbacks" in Chapter 4, "Built Environment," of the General Plan is amended as follows:

Refer to the Zoning Ordinance and North Downtown Specific Plan, as amended by the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026.

### 6. Chapter 4, "Built Environment," Policy 19.1

Policy 19.1 in Chapter 4, "Built Environment," of the General Plan is amended as follows:

Policy 19.1. Use specific plans (as amended by the Walnut Creek Senior Housing Transit Village Initiative adopted in 2026) and precise plans for subareas within the Core Area. (Figures 15 and 16 show specific plan and precise plan areas as of 2005 and as of the effective date of the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026.)

### 7. Chapter 4, "Built Environment," Figure 15, "Specific Plan Boundaries."

The following language in Figure 15, "Specific Plan Boundaries" in Chapter 4, "Built Environment," of the General Plan is amended as follows:

SB 16- North Downtown, which refers to the North Downtown Specific Plan as amended by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026*

### 8. Chapter 4, "Built Environment," Figure 16, "Core Area Specific Plan and Redevelopment Area."

The following language in Figure 16, "Core Area Specific Plan and Redevelopment Area," in Chapter 4, "Built Environment," of the General Plan is amended as follows:

SP-16, which refers to the North Downtown Specific Plan as amended by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026

SP-16 North Downtown, which refers to the North Downtown Specific Plan as amended by the Walnut Creek Senior Housing Transit Village Initiative that was enacted in 2026*

### 9. Housing Element, Chapter 1, "Introduction" (Page 1-3).

The following language in Chapter 1, "Introduction" of the Housing Element, Section 1.2 "Community Context for Housing Planning: Walnut Creek's Story" is amended as follows:

North Downtown Specific Plan (adopted on October 15, 2019), as amended in 2024, and as further amended by the Walnut Creek Senior Housing Transit Village Initiative in 2026.

### 10. Housing Element, Chapter 3, "Housing Constraints" (Page 3-30).

The following language in the "North Downtown Specific Plan and West Downtown Specific Plan" section in Chapter 3, "Housing Constraints," is amended as follows:

Limits for height and FAR for parcels in the North Downtown Specific Plan (as amended by the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026) and West Downtown Specific Plan are regulated independently of the base zoning districts. With a community benefits agreement, the height and FAR limits are increased as shown on Figures 3-1, 3-2, and 3-3. Community benefits that the developer may provide in exchange for increased height and FAR include but are not limited to the following:

- Public open space
- Mid-block connections
- Affordable housing beyond that which is required
- Shared parking garage
- Grocery store
- Green buildings
- Off-site services or infrastructure improvements

## SECTION 3. Amendment to the North Downtown Specific Plan.

This section of the Initiative amends and readopts provisions of the North Downtown Specific Plan.

### A. Amendment to Land Use Category Figure 3.1 (Page 35).

Figure 3.1, labeled "Land Use Categories," of the North Downtown Specific Plan is amended to change the land use category applied to the Initiative Amendment Area from "Office (OF)" to "Mixed Use – Residential (MU-R)." Exhibit B-1 depicts the land use map and the list of land use categories in Figure 3.1 as of the Filing Date. Exhibit B-2 depicts the land use map and the list of land use categories in Figure 3.1 as amended by this Initiative.

Exhibit B-1 is not incorporated by reference into this Initiative, is not enacted or readopted by this Initiative, but is provided for informational purposes. The only aspect of Exhibit B-2 that is enacted by this Initiative is the portion specifying that the MU-R land use category applies to the Initiative Amendment Area, and Exhibit B-2 is incorporated by reference into this Initiative only to the extent it specifies the application of the MU-R land use category to the Initiative Amendment Area.

**B. MU-R Definition (Page 39).**

The definition of the MU-R land use category in Table 3.1 (labeled "Land Use Categories Found in North Downtown") of the North Downtown Specific Plan is amended as follows:

| | |
|---|---|
| ~~Emphasis~~ Mixed Use – Residential (MU-R) | Intended to encourage a combination of ground floor retail with office and/or residential uses above the ground floor, but on land zoned MU-RSC, the MU-R category is intended to encourage but not require retail in the garage/basement, on the two ground floors and the top floor with residential on other floors. However, residential must be the primary use, and if the accompanying mixed use is a commercial use on land zoned MU-RSC, then the commercial component is limited to a maximum FAR of 0.6. |

**C. History of North Downtown Specific Plan Amendments (Page 41).**

The 2024 Plan Amendment section in the North Downtown Specific Plan recites the history of North Downtown Specific Plan amendments. The following sentence is added at the end of that discussion, immediately preceding Table 3.3:

> The development potential was further altered by the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026.

**D. Mixed Use Policy LU 1.3 (Page 42).**

Policy LU 1.3 in Chapter 3 of the North Downtown Specific Plan is amended as follows:

> Horizontal and vertical mixed use. Mixed use is strongly encouraged in all of the land use designations where it is allowed. Uses may be mixed within the same building ("vertical" mixed use) or in adjacent buildings ("horizontal" mixed use). To the extent authorized by the applicable

zoning regulations, residential and/or non-residential uses may be included on any floor on a parcel designated MU-R.

### E. Role of North Downtown Specific Plan and MU-RSC Zoning, and Continuation of Nonconforming Status (Page 60).

Chapter 4 of the North Downtown Specific Plan contains a section discussing "Development Standards + Guidelines" beginning on page 60. The following paragraph on that page is amended as follows:

> This chapter is complemented by and consistent with the guidance for land use, transportation, and public infrastructure found in other chapters. For some topics, there is specific guidance about a particular location, land use category, frontage type, or other specific design situation that may arise. For other topics, guidance applies to the entire Plan Area. Except as otherwise expressly provided for herein, any discrepancy between the applicable citywide guidelines and the guidelines found in this document shall be resolved through the Design Review Process, provided, however, that on land zoned MU-RSC, the North Downtown Specific Plan and MU-RSC zoning regulations shall control.
>
> Changes to parcel lines to enable development on land zoned MU-RSC shall not affect any existing legal nonconforming status of any parcels affected by the changes to the parcel lines.

### F. Floor Area Ratio Development Standards and Guidelines 1.2 and 1.3 (Pages 61 and 63).

Development Standards and Guidelines 1.2 and 1.3 in Chapter 4, "Development Standards + Guidelines," Section 1, "Base Height and Intensity," are amended as follows:

> **DSG 1.2 Parking structures excluded from FAR**. Consistent with the City's Zoning Code, parking structures will be excluded from the FAR calculation, including garages used for vehicle inventory storage by auto dealerships. In addition, below grade floor area used for automobile service and repair uses shall be excluded from any FAR calculation. This text of DSG 1.2 applies to land zoned MU-RSC.
>
> **DSG 1.3 Parcels split between height and intensity zones**. For a small number of parcels, height and FAR maximums are split within the parcel as a result of Measure A maximums that run across these parcels. For these parcels, FAR and height should be calculated and applied in the following way:

• FAR for split parcels. FAR must be calculated separately for each different intensity area, but then may be proportionally combined and distributed across the site. For example, a project with 50% of its land area in a 1.6 FAR zone and 50% in a 2.0 FAR zone may have a combined maximum FAR of 1.8 (1.6x50% + 2.0x50% = 1.8) distributed within building space across the entire site. A project with 30% of its land area in a 1.6 FAR zone and 70% in a 2.0 FAR zone would have a combined maximum FAR of 1.9 (1.6x30% + 2.0x70% = 1.9) distributed across the site. Calculations are rounded to the nearest tenth.

• Height for split parcels. Heights must be consistent with the height and intensity map (Figure 4.1) as applicable for any given location on the parcel, and cannot be combined or distributed across the site.

This text of DSG 1.3 applies to land zoned MU-RSC.

### G. Discussion of Floor Area Ratio (Page 63).

The discussion of Floor Area Ration in Chapter 4, "Development Standards + Guidelines," Section 1, "Base Height and Intensity." is amended as follows:

**FLOOR AREA RATIO (FAR)**. Development intensity, which applies to nonresidential and mixed uses, refers to the extent of development on a parcel of land or lot. Floor area ratio (FAR) is used as a measure of non-residential or mixed-use development intensity. FAR expresses the intensity of use on the lot. The FAR represents the ratio between the total gross floor area of all buildings on a lot and the total net land area of that lot, both expressed in square feet. For example, a 20,000 square foot building on a 40,000 square foot lot yields a FAR of 0.5. A single-story building that covers half of the lot, a two-story building covering one-quarter of the lot, or a four-story building covering one-eighth of the lot are all representations of a 0.5 FAR. Non-habitable spaces such as parking structures, and unfinished basements, and below grade floor area used for automobile service and repair uses are not included in FAR calculations. On land zoned MU-RSC, for purposes of calculating FAR, the terms "floor area ratio" and "gross floor area" shall have the meanings stated in WCMC §§ 10-2.2.2405 and 10-2.2.2406, and "total net land area" shall have the same meaning as "lot net area" as defined in WCMC, §10-2.1.303, paragraph 122, as amended by the Walnut Creek Senior Housing Transit Village Initiative enacted in 2026.

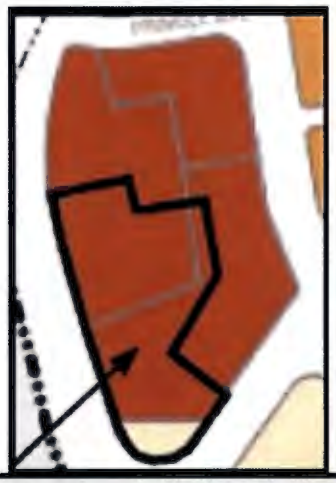
## H. Base Floor Area Ratio and Height Map Figure 4.1 (Page 64).

Figure 4.1 of the North Downtown Specific Plan is labeled "Base Intensity and Building Height." Exhibit B-3 depicts the map and the map key (which shows which "Max FAR (base)" and "Max Height (base)" numbers correlate to which colors on the map) from Figure 4.1 as of the Filing Date. In Exhibit B-3, this map has been annotated to indicate the Initiative Amendment Area. To provide complete information and for information purposes only, Exhibit B-3 reproduces an asterisked note from Figure 4.1 that pertains to the Mixed Use Special District; however, the Initiative Amendment Area is not within the Mixed Use Special District so this note is not applicable.

The "Max FAR (base)" and "Max Height (base)" for the Initiative Amendment Area in Figure 4.1 are readopted and therefore subject to the amendment procedures specified in this Initiative.

## I. FAR and Height Bonus Map Figure 4.3 (Page 70).

Figure 4.3 of the North Downtown Specific Plan is labeled "FAR and Height Bonus Potential with Provision of Community Benefits." The relevant portion of the current Figure 4.3, annotated to indicate the location of the Initiative Amendment Area with a black outline and arrow, is as follows:



| Max FAR (base) | Max FAR (with community benefit) | Max Height (base) |
|---|---|---|
| 1.5 | 2.5 | 35' |
| 1.8 | 2.8 | 45' |
| 1.8 | 2.8 | 50' |
| 2.5 | 3.5 | 70' |
| 2.5 | N/A | 35' |
| 2.8 | N/A | 50' |
| 3.5 | 4.5 | 89' |

The "Max FAR (base)," Max FAR (with community benefit)" and "Max Height (base)" for the Initiative Amendment Area in Figure 4.3 are readopted and therefore subject to the amendment procedures specified in this Initiative.

### J. Front Setbacks and New DSG 3.0 (Page 71).

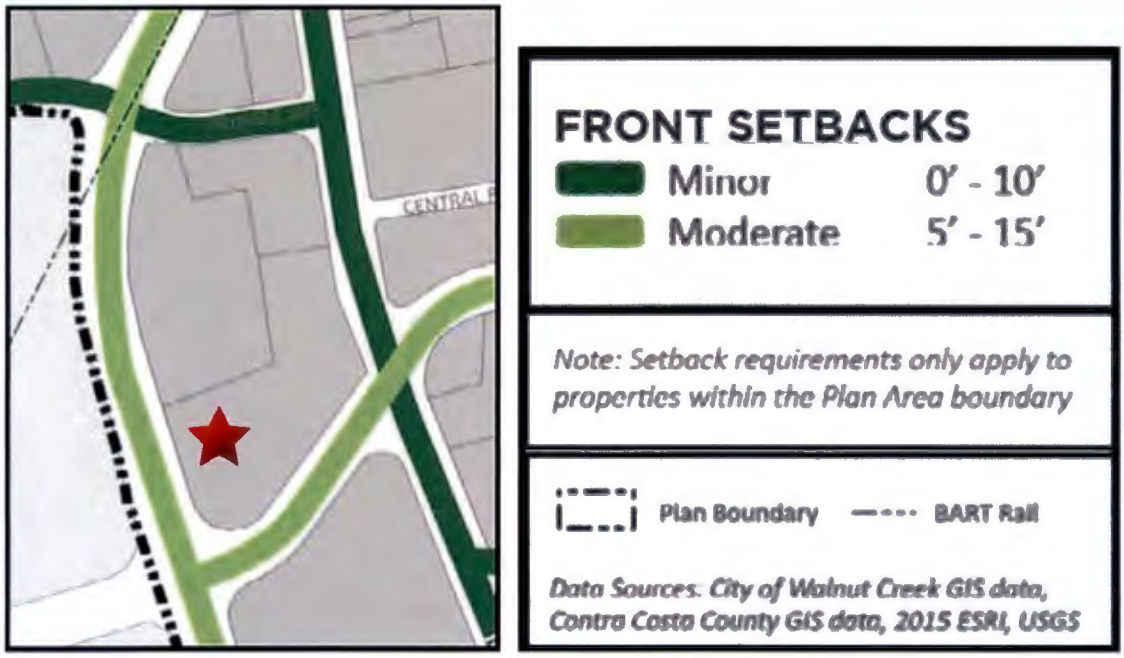
Chapter 4 "Development Standards + Guidelines," Section 3 "Setbacks" is amended to add a new Design Standard and Guideline 3.0 in the "Front Setbacks" section, stating as follows:

**FRONT SETBACKS**

**DSG 3.0 MU-RSC Frontages**. On land zoned MU-RSC, the following applies. All frontage and front building requirements (including Minor Front Setback and Moderate Front Setback provisions) apply only to the primary frontage. The primary frontage exists where a parcel abuts two public streets, with the primary frontage being the one that has the main entrance to the building or collection of buildings on that parcel. The secondary frontage is the lot line that abuts the other public street. The

primary frontage is subject to both the 5-foot minimum setback and 15-foot maximum setback in Figure 4.4. The secondary frontage is subject to the 5-foot minimum setback in Figure 4.4, and there is no maximum setback.

This new DSG 3.0 refers to Figure 4.4. The relevant portion of Figure 4.4, which has been annotated with a star to show the general vicinity of the Initiative Amendment Area, and which is not enacted or readopted by this Initiative but is provided for informational purposes, is as follows:




**K. Front Setbacks and DSG 3.2 (Page 71).**

Design standard and guideline 3.2 in Chapter 4 of the North Downtown Specific Plan is amended as follows:

**DSG 3.2 Public outdoor space and architectural features in the front setback area.** Architectural and public outdoor space features such as massing breaks, alcoves, outdoor dining areas, public plazas, building entry areas, landscaping, or other outdoor areas are encouraged within the range of the front setback area as defined in Figure 4.4, but outdoor areas may extend into the parcel beyond the front setback area with approval from the Design Review Commission, except as set forth below with respect to land zoned MU-RSC. At least 70% of the building frontage should be within the front setback area range to encourage street

presence and activation of the public realm by the building, with flexibility allowed with approval from the Design Review Commission.

On land zoned MU-RSC, no more than a 3-foot public right-of-way dedication is required along the east side of North California Boulevard, and no more than an 8-foot public right-of-way dedication is required along the north side of Ygnacio Valley Road. These dedications will comply with Figures 5.6b and 5.10b, and the Walnut Creek Zoning Map Future Street Lines, Overlay Zones (Sheet 2).

### L. Setback Calculations and Dedications in DSG 3.5 (Page 72).

Design standard and guideline 3.5 in Chapter 4 of the North Downtown Specific Plan is amended as follows:

**DSG 3.5 Calculation of front setbacks for future public right-of-way dedication**. For the streets where a future public right-of-way dedication is required, setbacks are calculated from the future public right-of-way. Chapter 5 (Mobility) defines required future public right-of-way dedications, which only occur on portions of North Broadway, Ygnacio Valley Road, and North Main Street. On land zoned MU-RSC, no more than a 3-foot public right-of-way dedication is required along the east side of North California Boulevard, and no more than an 8-foot public right-of-way dedication is required along the north side of Ygnacio Valley Road. These dedications will comply with Figures 5.6b and 5.10b, and the Zoning Map, Future Street Lines, Overlay Zones (Sheet 2).

### M. Rear and Side Setbacks in DSG 3.11 (Page 72).

Design standard and guideline 3.11 in Chapter 4 of the North Downtown Specific Plan is amended as follows:

**DSG 3.11 Rear and side setbacks**. Rear and side setbacks are not required except as established by the Zoning Ordinance. On land zoned MU-RSC, no front, rear or side setbacks are required from lot lines in the interior of a block that is surrounded by public streets.

### N. New DSG 4.7A Regarding Access (Page 76).

A new design standard and guideline 4.7A is added to the discussion of Site Planning in Chapter 4 of the North Downtown Specific Plan, stating as follows:

**DSG 4.7A. Access to land zoned MU-RSC**. Primary and secondary access to a parcel zoned MU-RSC that has the minimum required frontage along a public street may be provided via a permanent easement across

an adjacent parcel. Such access will implement policy 5.3 in Chapter 4 of the General Plan, which states "Require that all new parcels have permanent access to a public street," and shall not be deemed to convert such a parcel into a flag lot.

### O. Stepbacks in DSG 5.2 (Page 96).

Design standard and guideline 5.2 in Chapter 4 of the North Downtown Specific Plan is amended as follows:

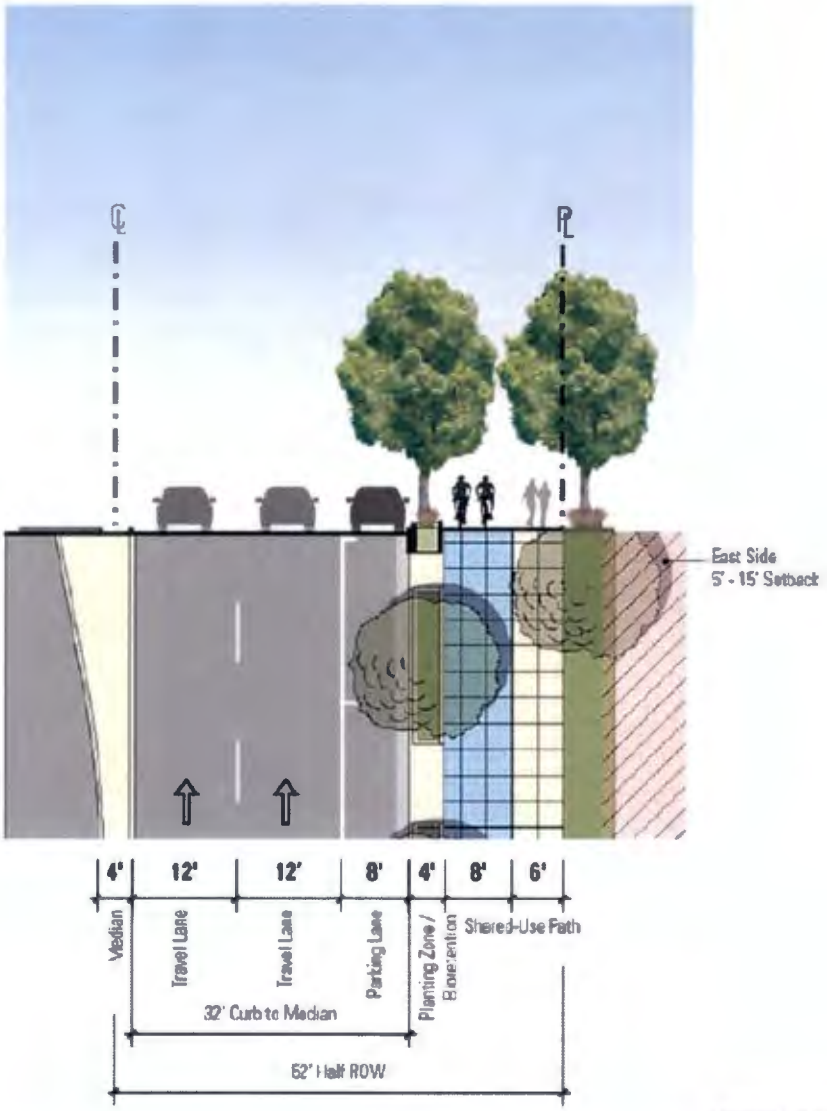
> **DSG 5.2 Vertical articulation**. Building stepbacks, articulation in wall planes, architectural details and variations in materials and color should be used to break up the vertical height of buildings and distinguish between upper and ground floors. Variations in height, massing, roofline, and vertical articulation overall are encouraged. However, no stepbacks are required on land zoned MU-RSC.

### P. Figure 5.6b, North California Blvd. Cross Section (Page 137).

Chapter 5 "Mobility" contains the following Figure 5.6b "Proposed North California Cross Section (YVR to Pedestrian Crossing at BART)":

*Figure 5.6b*

**PROPOSED NORTH CALIFORNIA BOULEVARD CROSS SECTION (YVR TO PEDESTRIAN CROSSING AT BART)**




NORTH DOWNTOWN SPECIFIC PLAN

Figure 5.6b is amended to add the following text at the bottom of the figure:

This Figure 5.6b applies to land zoned MU-RSC.

### A. Figure 5.10b Ygnacio Valley Road Cross Section (Page 137).

Chapter 5 "Mobility" contains the following Figure 5.10b "Proposed Long-Term Ygnacio Valley Road Cross Section (California Blvd to Civic Dr)":

*Figure 5.10b*

**PROPOSED LONG-TERM YGNACIO VALLEY ROAD CROSS SECTION (CALIFORNIA BLVD TO CIVIC DR)**

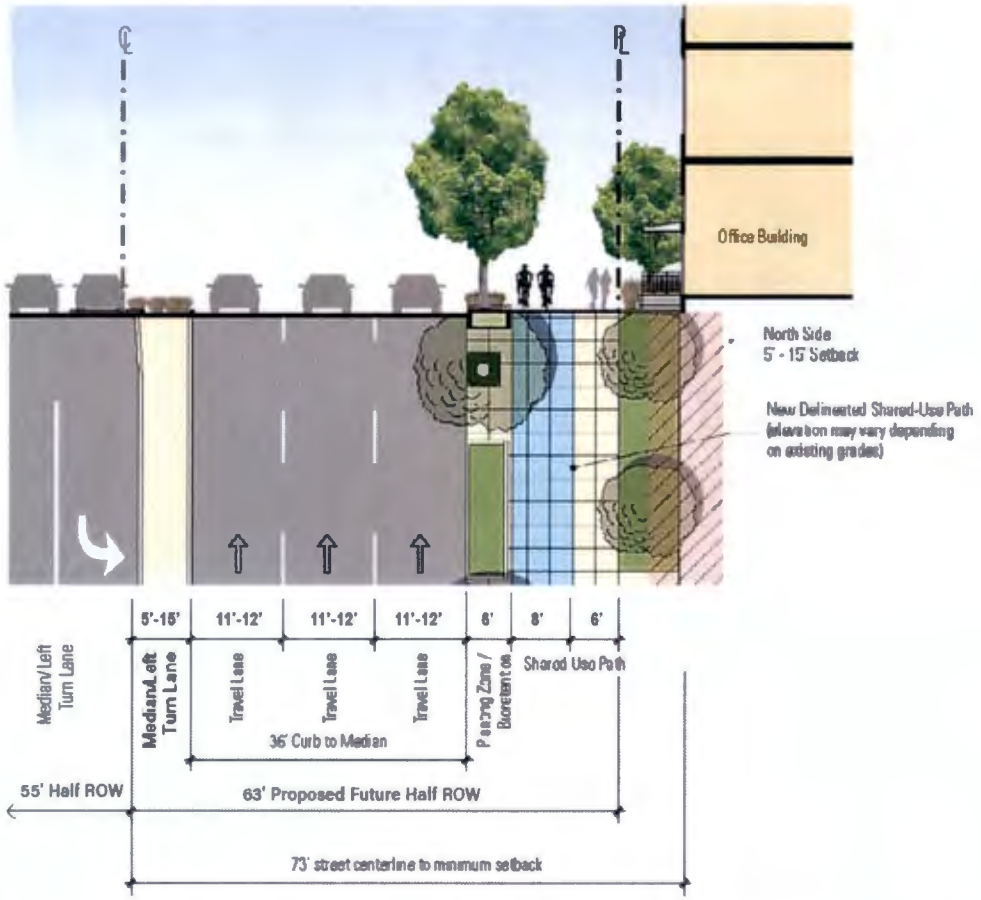



Figure 5.10b is amended to add the following text at the bottom of the figure:

This Figure 5.10b applies to land zoned MU-RSC.

### SECTION 4. Amendment to Title 10, Chapter 2 (Zoning) of the Walnut Creek Municipal Code and Zoning Map.

This section of the Initiative amends and readopts provisions of the Walnut Creek Zoning Code and Zoning Map.

## A. Amendment to Zoning Map.

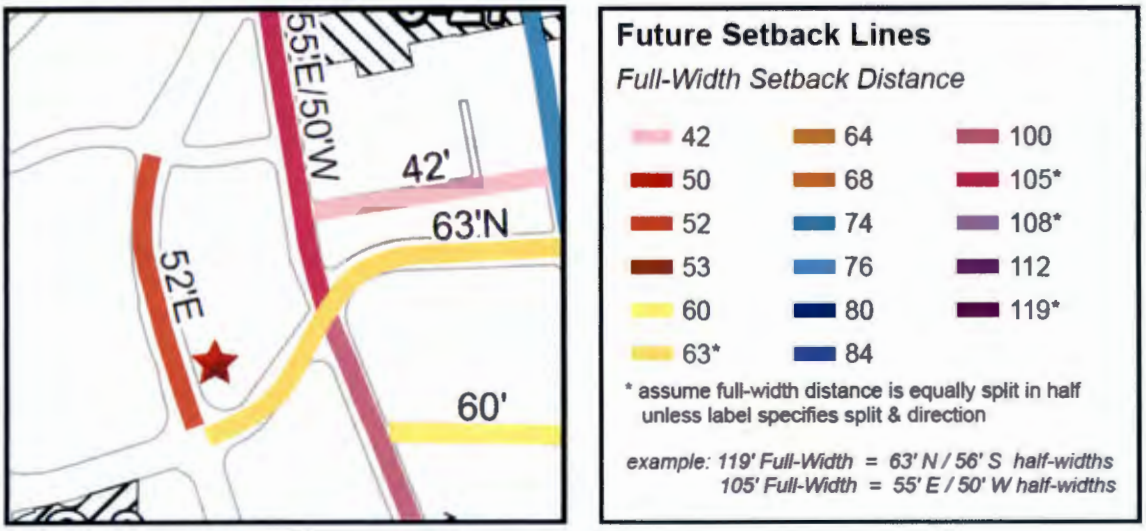
### 1. Zoning Districts Map.

The Zoning Map of Walnut Creek is amended to rezone the Initiative Amendment Area from "Office Commercial (O-C)" to a new zoning district called "Mixed Use – Residential Senior & Commercial (MU-RSC)." Exhibit C-1 depicts the relevant portion of both the Walnut Creek printable zoning map and the Walnut Creek Zoning Web Map as of the Filing Date. Exhibit C-2 depicts the same portion of both maps, as amended by this Initiative.

Exhibit C-1 is not incorporated by reference into this Initiative, and is not enacted or readopted by this Initiative, but is provided for informational purposes. The only aspect of Exhibit C-2 that is enacted by this Initiative is the portion specifying that the MU-RSC zoning district applies to the Initiative Amendment Area, and Exhibit C-2 is incorporated by reference into this Initiative only to the extent it specifies the application of the MU-RSC zoning district to the Initiative Amendment Area.

### 2. Future Street Setbacks Map.

The Walnut Creek Zoning Map, Future Street Lines, Overlay Zones (Sheet 2) is amended as set forth below. The relevant portion of this map, which has been annotated with a star to show the general vicinity of the Initiative Amendment Area, is as follows:




This map is amended to add the following text immediately beneath the current text in the map key that states: "*105' Full-Width = 55' E / 50' W half widths*":

> This Walnut Creek Zoning Map, Future Street Lines, Overlay Zones (Sheet 2) applies on land zoned MU-RSC.

### B. New Mixed Use – Residential Senior & Commercial Zoning District.

A new Article 24 of Part II of Chapter 2 of Title 10 of the Walnut Creek Municipal Code, for a new zoning district called "Mixed Use – Residential Senior & Commercial (MU-RSC)" is enacted. The regulations for this new district are set forth in Exhibit C-3, which is incorporated by this reference as though set forth in full. All text of the regulations for this new district is new text that is enacted by this Initiative, but it is not underlined in Exhibit C-3 for ease of reading.

### C. Definition of Net Lot Area.

Section 10-2.1.303, paragraph 122, of the Walnut Creek Municipal Code is amended as follows:

> **Lot Net Area**: The total area included within the lot lines of a lot, excluding alleys, vehicular easements, and areas to be included in future street rights-of-way as established by easement, dedication, or ordinance, provided, however, that in the MU-RSC district, Lot Net Area means the total area within the lot lines of a lot excluding only public rights of way associated with existing or future streets and shared use paths along public streets; private easements, including those for vehicular, pedestrian and bicycle access, for utilities, and for vehicular and bicycle parking, are included.

## SECTION 5. Inconsistency With Other Ballot Measures.

This Initiative is deemed to conflict with any measure appearing on the same ballot that addresses, restricts or affects, in whole or in part, any of the following subjects, whether it does so by specific application to the Initiative Amendment Area or as a more general enactment that could otherwise be applied in a manner that addresses any of the following subjects: development regulations or land use regulations applicable to the Initiative Amendment Area, or nonconforming use regulations applicable to the block surrounded by Ygnacio Valley Road, North California Boulevard, Pringle Avenue and North Main Street. Accordingly, among any such measures, the one with the highest number of affirmative votes shall control.

## SECTION 6. Implementation of this Initiative.

Upon the Effective Date of this Initiative, City staff is directed promptly to take such administrative and clerical steps as may be required to implement this Initiative, including, without limitation, revising any figures to reflect the provisions adopted by this Initiative.

To ensure that the General Plan remains an integrated, internally consistent, and compatible statement of policies for the City, and to ensure that the actions of the voters or the City Council in enacting this Initiative are given effect, any provision of the General Plan or North Downtown Specific Plan that applies to the Initiative Amendment Area, and that is adopted between the Filing Date and the Effective Date of the General Plan Amendment shall, to the extent that such interim-enacted provision is inconsistent with the General Plan Amendment enacted by this Initiative, be deemed void and unenforceable, and shall be amended as soon as possible and in the manner and time required by state law to ensure consistency between the provisions adopted by this Initiative and other elements of the General Plan.

To the extent permitted by law, this Initiative authorizes and directs the City staff and decisionmakers to amend any elements or provisions of the General Plan and all other City ordinances, plans, policies, programs, and implementation measures (including all exhibits and figures) as soon as possible, to implement this Initiative and to ensure consistency and correlation between this Initiative and other elements of the General Plan, the North Downtown Specific Plan, and the zoning applicable to the Initiative Amendment Area.

**SECTION 7. Interpretation.**

**A. Rules of Interpretation.**

This Initiative must be broadly construed to achieve the purposes stated above. It is the intent of the voters that the provisions of this Initiative be interpreted or implemented by the City and others in a manner that facilitates the purpose set forth in this Initiative. This Initiative must be interpreted to be consistent with all federal and state laws, rules, and regulations.

To ensure that the intent of this Initiative prevails, words in this Initiative shall be interpreted according to the purposes described in this Initiative, and shall be applied according to their plain meaning. In the event the plain meaning is not clear, we declare our intent that this Initiative be interpreted in light of the matters referenced in this Initiative. Any titles of the sections or subsections of this Initiative are inserted for convenience of reference only and shall be disregarded in interpreting, applying or implementing any part of the provisions of this Initiative.

**B. Definitions.**

As used in this Initiative the following terms shall have the following meanings, and the singular includes the plural of each of these terms:

1. *"City" and "city"* mean the City of Walnut Creek.

2. "*Effective Date*" means the date this Initiative takes effect, which shall be on the earliest date legally possible. If the four amendments of the mandatory elements of the General Plan permitted by state law for any calendar year have already been enacted in the year in which this Initiative would otherwise take effect, the General Plan Amendment set forth in this Initiative (including both provisions enacted and readopted by this Initiative) shall take effect on January 1 of the next year. All aspects of this Initiative other than the General Plan Amendment shall still take effect on the earliest date legally possible, but are subject to a condition of effectiveness of the General Plan Amendment enacted by the Initiative.

3. "*FAR*" and "*Floor Area Ratio*" means, according to the General Plan, the ratio of developed gross floor area to net lot area, both expressed in square feet.

4. "*Filing Date*" means the date the Notice of Intent to Circulate Petition for this Initiative was filed with the City Clerk.

5. "*General Plan*" means the Walnut Creek General Plan 2025.

6. "*General Plan Amendment*" means the amendment to the General Plan enacted by this Initiative, and includes both provisions enacted and provisions readopted by this Initiative.

7. "*General Plan Land Use Map*" means the Walnut Creek General Plan Land Use Map.

8. "*Initiative*" means this initiative measure, labeled "Walnut Creek Senior Housing Transit Village Initiative."

9. "*Initiative Amendment Area*" means the following: For purposes of Section 2 of this Initiative regarding the General Plan, "Initiative Amendment Area" refers to the area marked as such in Exhibit A-2. For purposes of Section 3 of this Initiative regarding the North Downtown Specific Plan, "Initiative Amendment Area" refers to the area marked as such in Exhibit B-2. For purposes of Section 4 of this Initiative regarding Zoning, "Initiative Amendment Area" means the area marked as such in Exhibit C-2. The boundaries of Initiative Amendment Area do not all follow property lines existing as of the Filing Date, and the Initiative Amendment Area is to be determined based on the exhibits to this Initiative rather than current property lines.

10. "*Landowner Application*" means an application of an owner of all or any portion of the property in the Initiative Amendment Area, for any

approval, enactment or decision related in any way to development within the Initiative Amendment Area.

11. "*Municipal Code*" means the Walnut Creek Municipal Code.

12. "*North Downtown Specific Plan Amendment*" means the amendment to the North Downtown Specific Plan enacted by this Initiative, and includes both provisions enacted and provisions readopted by this Initiative.

13. "*Subsequently Amended*" and "*Subsequent Amendment*" mean any actions taken after this Initiative takes effect that alter, supplement, repeal or make changes in any way to one or more Walnut Creek plans, ordinances, codes, policies, guidelines or regulations.

14. "*WCMC*" means the Walnut Creek Municipal Code.

15. "*Zoning Amendment*" means the amendment to the Zoning Code enacted by this Initiative, and includes both provisions enacted and provisions readopted by this Initiative.

16. "*Zoning Code*" and "*Zoning Ordinance*" mean Chapter 2 of Title 10 of the Walnut Creek Municipal Code, beginning with section 10-2.1.101.

17. "*Zoning Map*" means the Zoning Map of the City, which is published online as both the printable zoning map and the Zoning Web Map.

**SECTION 8. Severance.**

If any word of this Initiative, or its application to any situation, is held invalid or unenforceable, in a final judgment that is no longer subject to rehearing, review or appeal by a court of competent jurisdiction, then the invalid word is severed, or the invalid words are severed, and the remaining parts of this Initiative, and the application of any part of this Initiative to other situations, shall continue in full force and effect. We declare that we would have adopted this Initiative, and each enactment (General Plan Amendment, North Downtown Specific Plan Amendment, and Zoning Amendment), each section, each paragraph, each phrase and each word, irrespective of whether any other portion, or application to any situation, be held invalid. It is our intent that any portion of this Initiative that can lawfully be implemented be implemented, even if doing so would not permit implementation of the development contemplated herein, even if doing so would otherwise appear trivial or inconsequential, and even if the valid portion appears intertwined with the invalidated portion. Each enactment (General Plan Amendment, North Downtown Specific Plan Amendment, and Zoning Amendment), section, sub-section, sentence, clause, phrase, part, portion and word of this Initiative shall be interpreted to be complete in itself, and functionally and grammatically separate from each other word. If any provision of this Initiative is held invalid as

applied to any person or circumstance, such invalidity does not affect any application of this Initiative that can be given effect without the invalid application. If any portion of this Initiative is held by a court of competent jurisdiction to be invalid, we indicate our strong desire that: (i) the City Council use its best efforts to sustain and re-enact that portion, and (ii) the City Council implement this Initiative by taking all steps possible to cure any inadequacies or deficiencies identified by the court in a manner consistent with the express and implied intent of this Initiative, including adopting or reenacting any such portion in a manner consistent with this Initiative.

**SECTION 9. Amendment.**

The following Subsequent Amendments to this Initiative may be adopted without a vote of the people and without a Landowner Application:

1. Subsequent Amendments to any text or diagrams that are included within this Initiative for informational purposes.

The following Subsequent Amendments to this Initiative may be adopted without a vote of the people and without a Landowner Application, provided any such Subsequent Amendment does not result in a substantive change to any provision enacted or readopted by this Initiative:

2. Subsequent Amendments to make clerical changes to renumber, reproduce or relocate any text or diagram enacted or readopted by this Initiative.

3. Subsequent Amendments to fix any typographical or clerical errors in the provisions enacted or readopted by this Initiative.

All other Subsequent Amendments to this Initiative may be adopted only upon a vote of the people or City approval of a Landowner Application. In processing a Landowner Application, the City shall employ the procedures that would apply if the provisions enacted or readopted by this Initiative had instead been enacted by the regular, non-initiative process.

## EXHIBITS

The following is a list of exhibits. This listing is provided for informational purposes and does not constitute part of the matters enacted or readopted by this Initiative.

Exhibit A-1 Current General Plan Land Use Map

Exhibit A-2 – General Plan Land Use Map as Amended

Exhibit B-1 Current Specific Plan Figure 3.1 "Land Use Categories"

Exhibit B-2 Specific Plan Figure 3.1 "Land Use Categories" as Amended

Exhibit B-3 Specific Plan Figure 4.1 "Base Intensity and Building Height"

Exhibit C-1 Current Printable Zoning Map and Current Zoning Web Map

Exhibit C-2 Printable Zoning Map and Zoning Web Map as Amended

Exhibit C-3 MU-RSC Zoning District Regulations

185256902

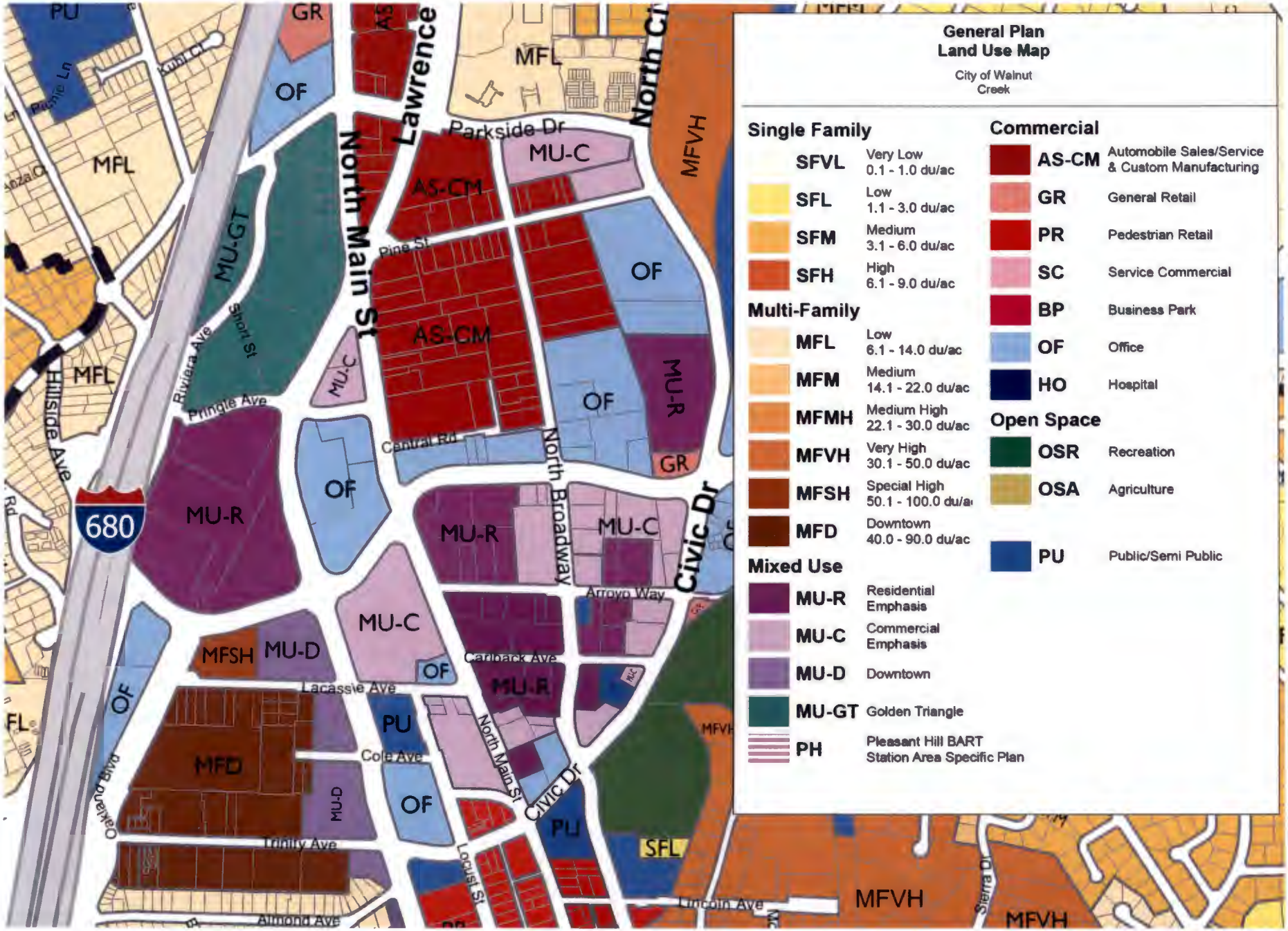



**Exhibit A-1**, Current General Plan Land Use Map, Excerpt Showing Area Amended by Initiative

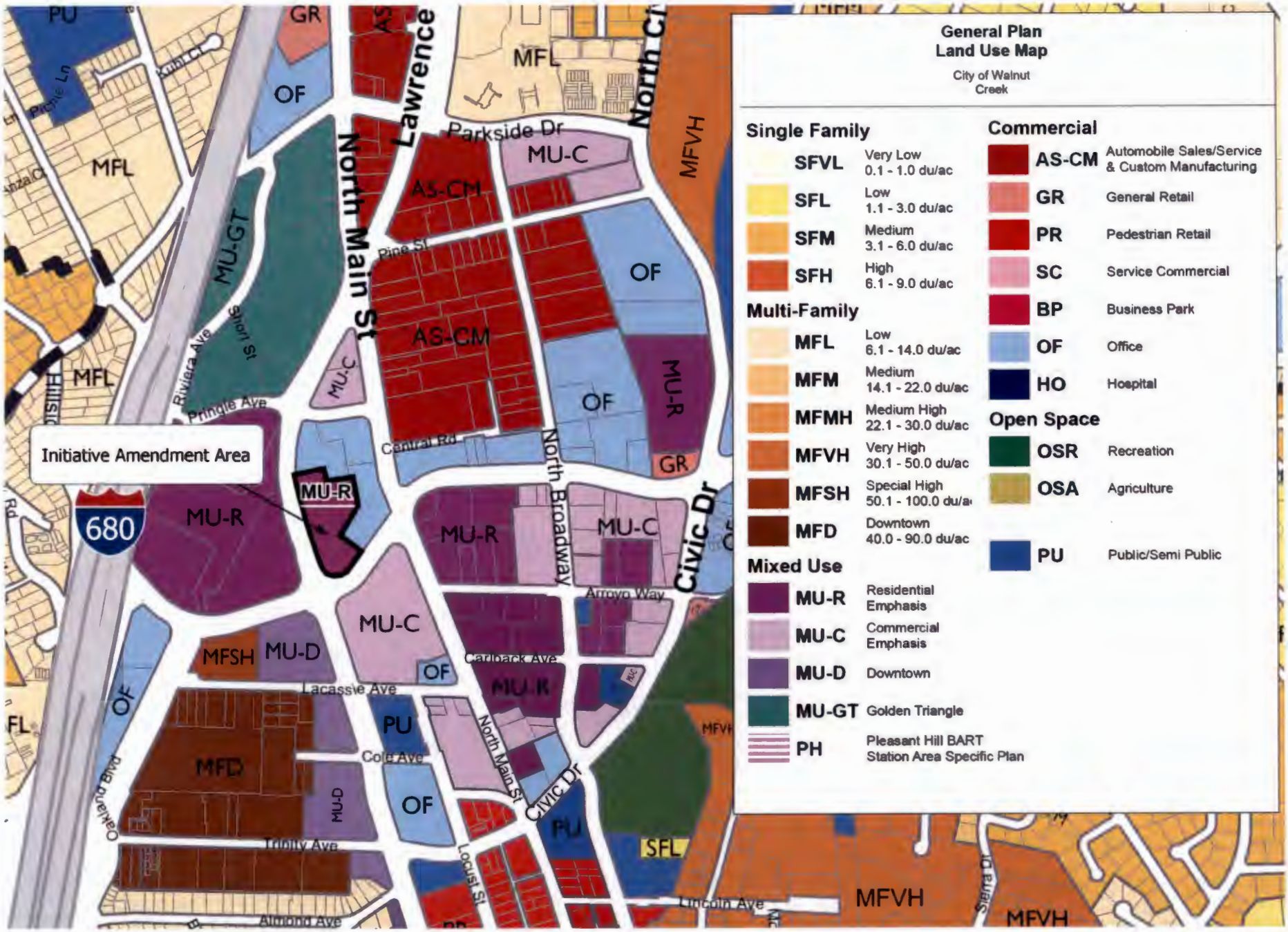
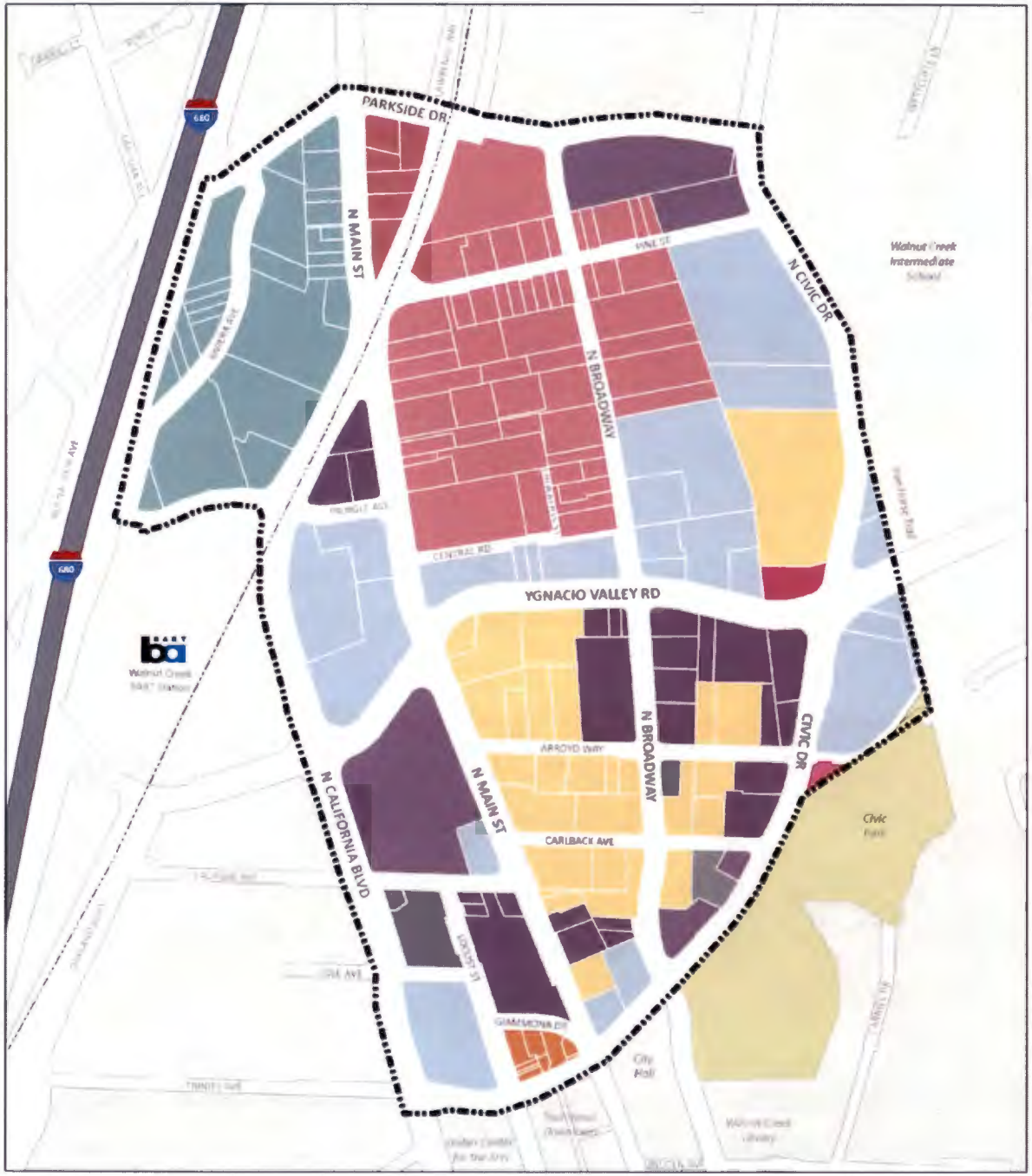


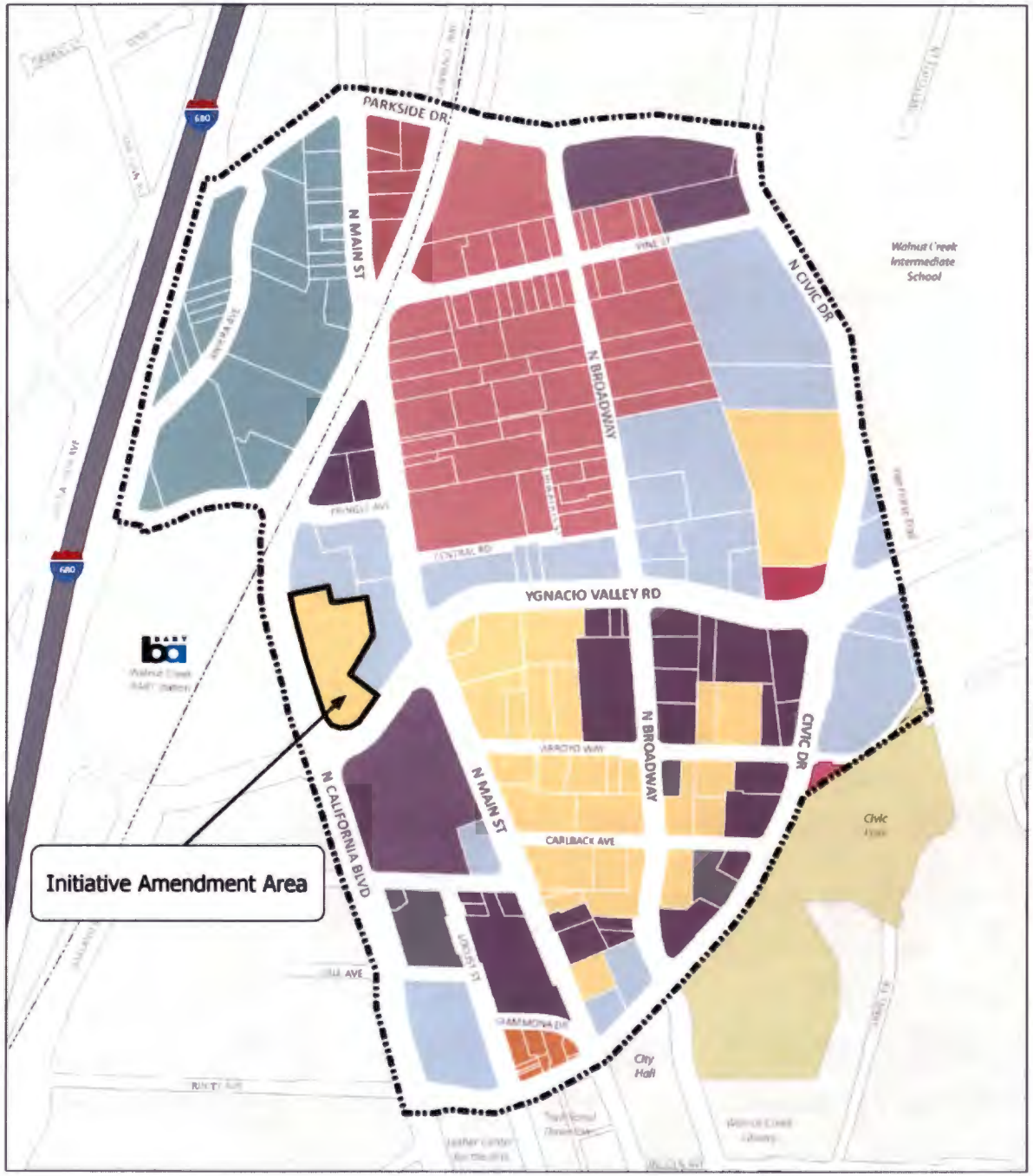

**Exhibit A-2**, General Plan Land Use Map As Amended, Excerpt Showing Area Amended by Initiative




**LAND USE CATEGORIES**

- Auto Sales & Custom Manufacturing (AS-CM)
- Mixed Use - Residential (MU-R)
- Office (OF)
- Mixed Use - Commercial (MU-C)
- Pedestrian Retail (PR)
- General Retail (GR)
- Public/Semi-Public (PU)
- Golden Triangle (GT)

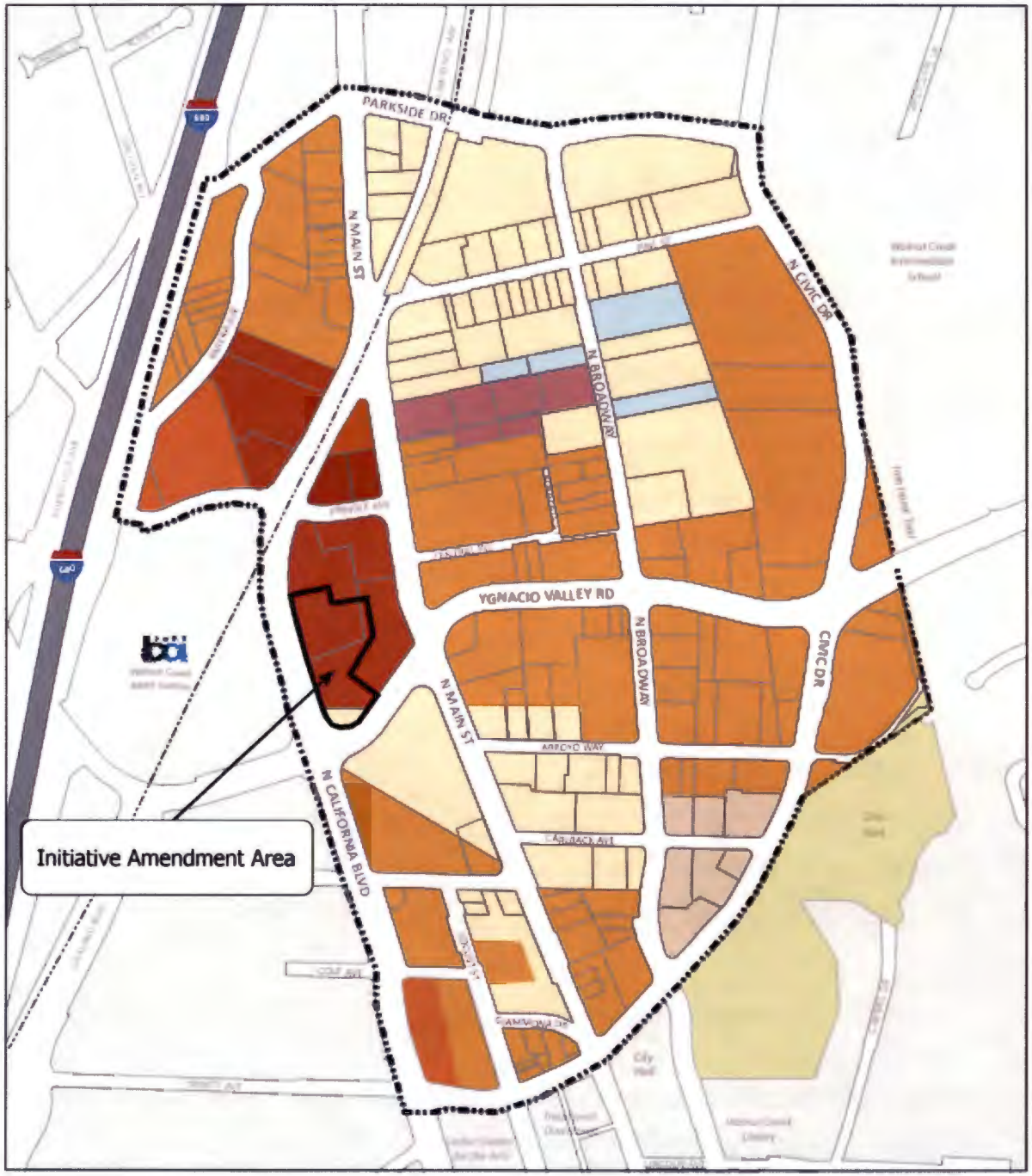
**Exhibit B-1,** Current North Downtown Specific Plan, Fig. 3.1, Land Use Categories




**LAND USE CATEGORIES**

- Auto Sales & Custom Manufacturing (AS-CM)
- Mixed Use - Residential (MU-R)
- Office (OF)
- Mixed Use - Commercial (MU-C)
- Pedestrian Retail (PR)
- General Retail (GR)
- Public/Semi-Public (PU)
- Golden Triangle (GT)

**Exhibit B-2**, North Downtown Specific Plan, Fig. 3.1, Land Use Categories, As Amended




**BASE INTENSITY AND BUILDING HEIGHT**

| Max FAR (base)* | Max Height (base) |
|---|---|
| 1.5 | 35' |
| 1.8 | 45' |
| 1.8 | 50' |
| 2.5 | 70' |
| 2.5 | 35' |
| 2.8 | 50' |
| 3.5 | 89' |



**Exhibit B-3**, Current North Downtown Specific Plan, Fig. 4.1, Base Intensity and Building Height (Annotated to indicate the Initiative Amendment Area)

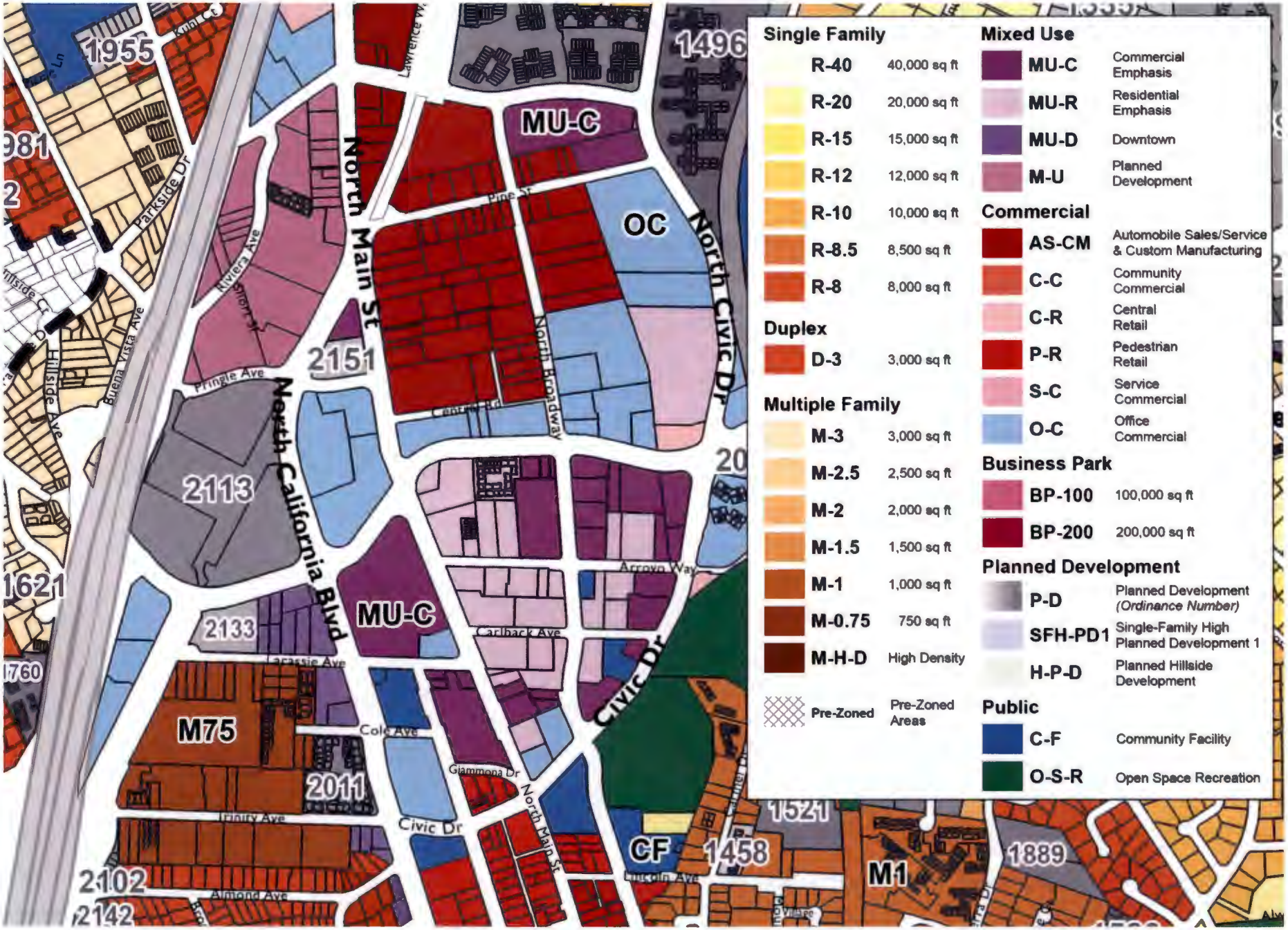



**Exhibit C-1, Page 1,** Current Printable Zoning Map, Excerpt Showing Area Amended by Initiative

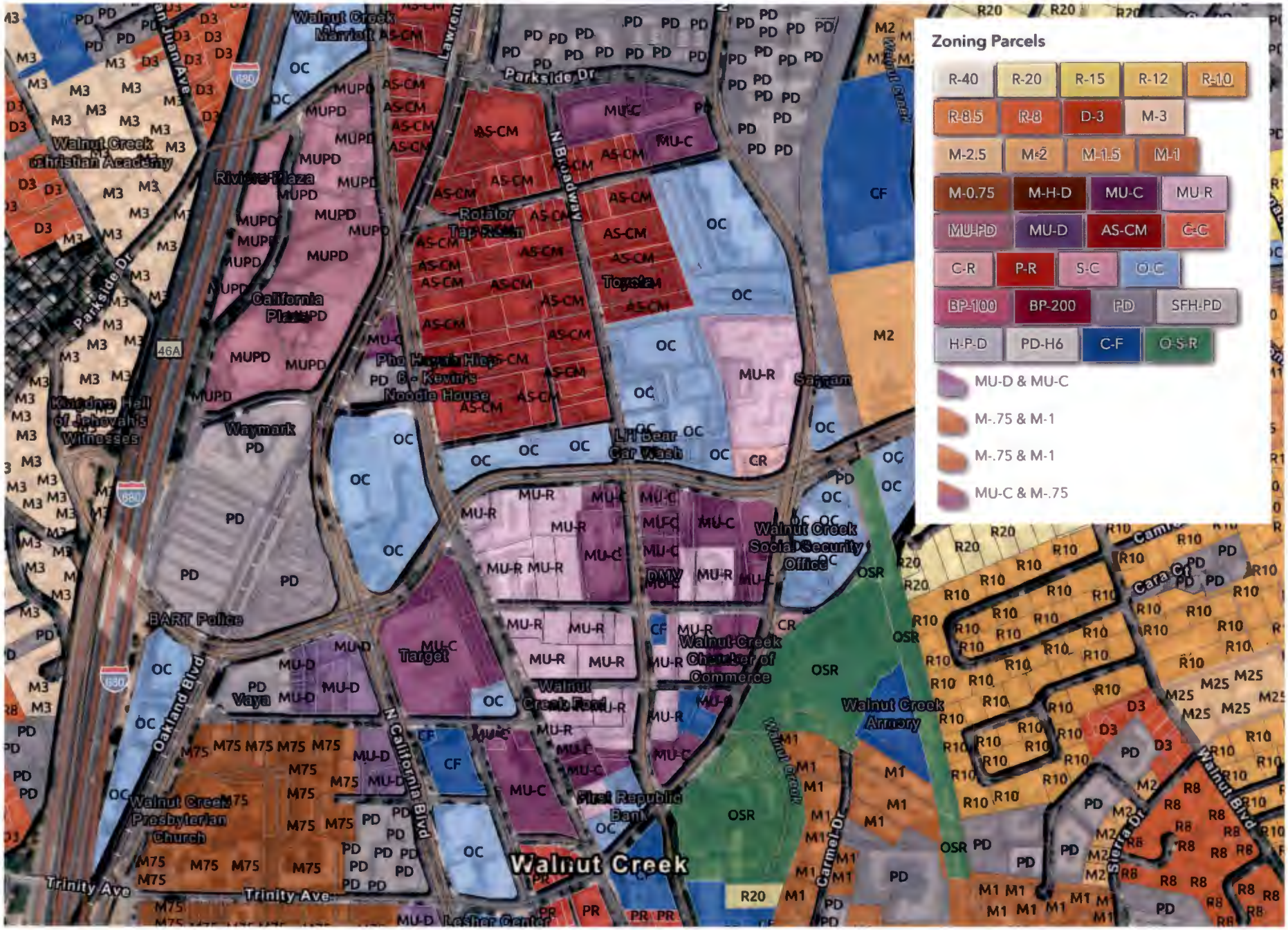



**Exhibit C-1, Page 2,** Current Zoning Web Map, Excerpt Showing Area Amended by Initiative

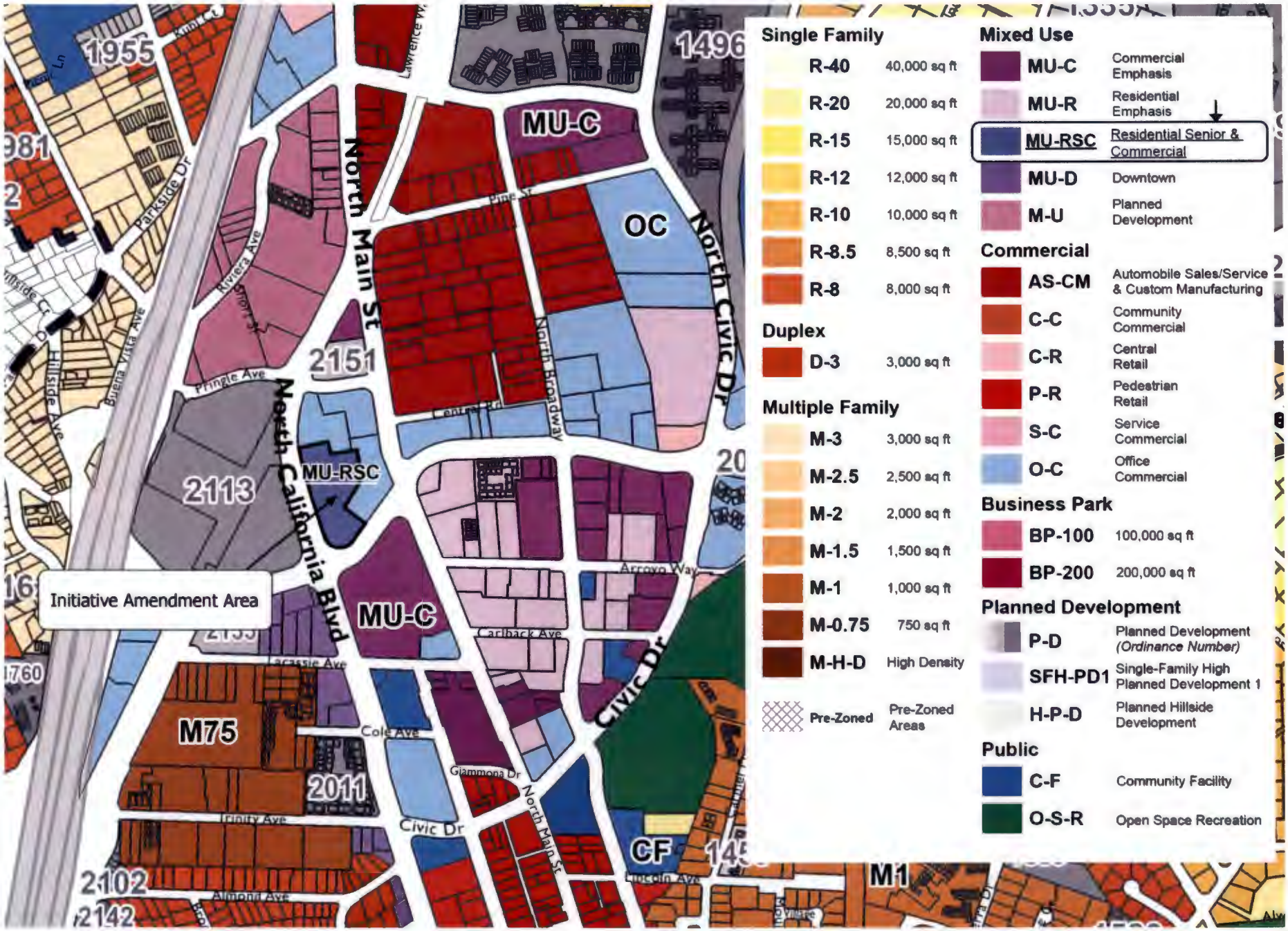
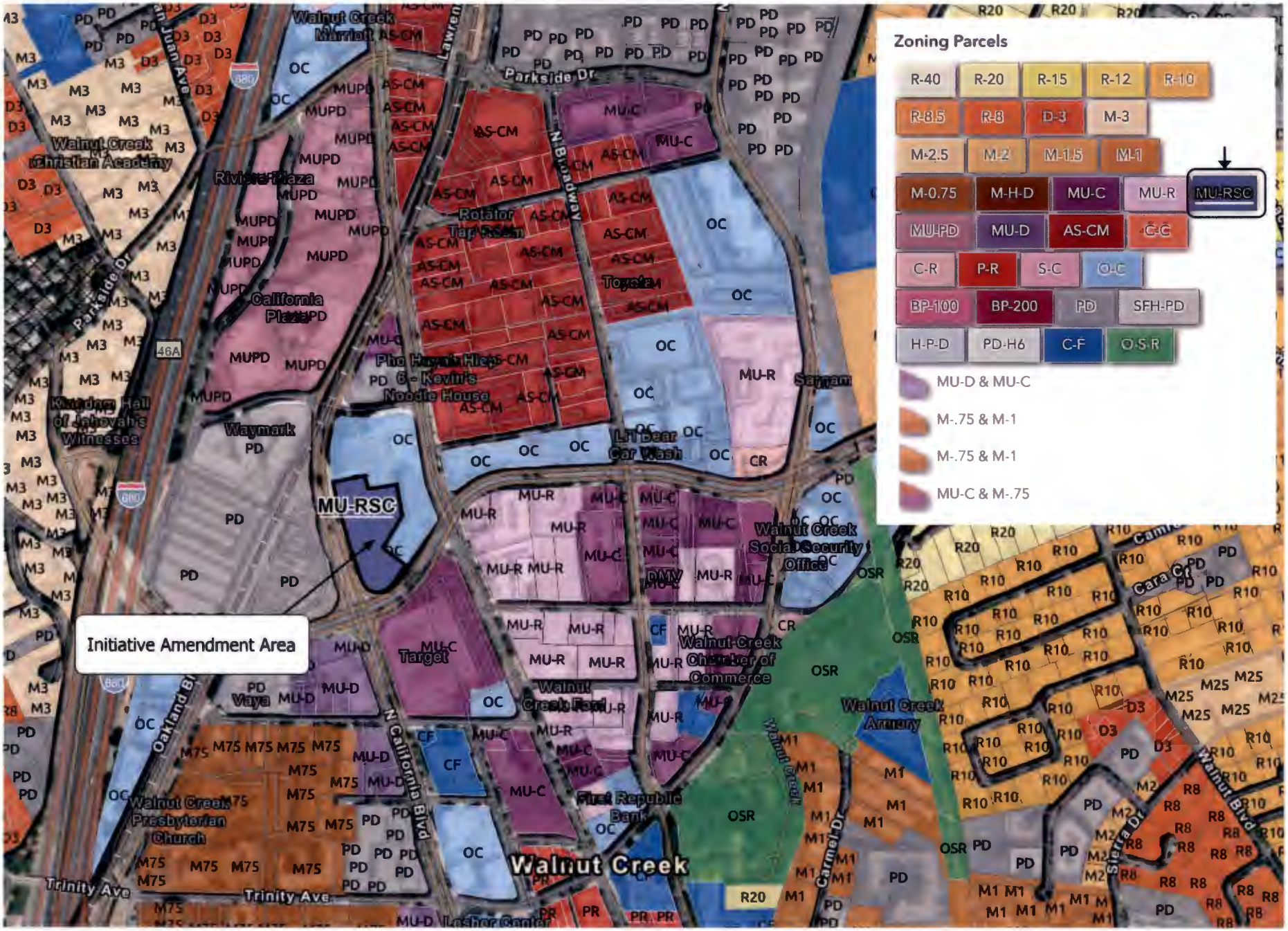



**Exhibit C-2, Page 1,** Printable Zoning Map As Amended, Excerpt Showing Area Amended by Initiative


Zoning Parcels
R-40
R-20
R-15
R-12
R-10
R-8.5
R-8
D-3
M-3
M-2.5
M-2
M-1.5
M-1
M-0.75
M-H-D
MU-C
MU-R
MU-RSC
MU-PD
MU-D
AS-CM
C-C
C-R
P-R
S-C
O-C
BP-100
BP-200
PD
SFH-PD
H-P-D
PD-H6
C-F
O-S-R
MU-D & MU-C
M-.75 & M-1
M-.75 & M-1
MU-C & M-.75
Initiative Amendment Area
MU-RSC
Walnut Creek
Parkside Dr
N Broadway
Lawen
Walnut Creek Marriott
Walnut Creek Christian Academy
Riviera Plaza
California Plaza
Waymark
Kingdom Hall of Jehovah's Witnesses
Pho Hoang Hiep & Kevin's Noodle House
Rotator Tap & Sign
Toyota
Lil' Bear Car Wash
Walnut Creek Social Security Office
DMV
Walnut Creek Chamber of Commerce
Walnut Creek Armory
First Republic Bank
Target
Viaya
Walnut Creek Presbyterian Church
Lesher Center
Oakland Blvd
N California Blvd
Trinity Ave
Carmel Dr
Sierra Dr
Cara Cr
Walnut Blvd
Walnut Creek Rd
Walnut Creek
Sam's
46A
680

## Exhibit C-3 – MU-RSC Zoning Regulations

Pursuant to Section 4 of this Initiative, a new zoning district is created in a new Article 24 in the Walnut Creek Municipal Code, Title 10 Planning and Zoning, Chapter 2 Zoning, Part II Base District Regulations. All regulations in Article 24 are new regulations enacted by this Initiative; however, underlining is not used in this Exhibit C-3 for ease of reading. The new regulations are as follows:

### Article 24 Mixed Use - Residential Senior & Commercial District (MU-RSC)

### 10-2.2.2401 Purpose and Intent.

The purpose of the Mixed Use - Residential Senior & Commercial (MU-RSC) District is to encourage the development of a combination of medium- to high-intensity senior residential uses and commercial uses within the Core Area. Development in the MU-RSC District is intended to be pedestrian-oriented, generally close to the street, and vertical in nature; typically with structured parking. Residential uses are encouraged but not required on all floors, while restaurant and other commercial uses and the non-residential components of multifamily developments (leasing offices, community rooms, exercise facilities, etc.) are encouraged but not required in the garage/basement, on the lower two floors and on the top floor. The MU-RSC District is intended to be primarily residential in nature, with the option for including a commercial component in residentially oriented mixed use developments. This district is consistent with and implements the MU-R land use designation in the General Plan and the MU-R land use category in the North Downtown Specific Plan.

This Article 24 (which consists of Walnut Creek Municipal Code (WCMC) §§ 10-2.2.2401 through 10-2.2.2409), paragraph 122 of WCMC § 10-2.1.303, the General Plan, the North Downtown Specific Plan and the Zoning Map (including Future Street Lines, Overlay Zones (Sheet 2)), were all enacted, readopted, or amended by the Walnut Creek Senior Housing Transit Village Initiative in 2026. References in this Article 24 to the provisions of any such regulations, plans or maps shall be interpreted to refer to such provisions as enacted, readopted or amended by that initiative.

This Article 24 also refers to other provisions of the WCMC, which were not enacted or amended by that initiative, and which apply in one or more areas of the city. References in this Article 24 to such other WCMC provisions shall be interpreted to refer to such provisions (as they may be amended from time to time).

This Article 24 also refers to certain state laws. References in this Article 24 to such state law provisions shall be interpreted to refer to those provisions (as they may be amended from time to time).

In the event of any inconsistency between the provisions of this Article and any other provisions of the WCMC, the provisions of this Article shall control in the MU-RSC district.

**10-2.2.2402 Land Use Regulations.**

A. In the following MU-RSC Land Use Table, the letters in the "Use Regulation" column are defined as follows:

P = A permitted use.

L = A use permitted subject to certain limitations prescribed by the MU-RSC Use Regulations Table that immediately follows the MU-RSC Land Use Table.

U = A use permitted on approval of a Conditional Use Permit.

Letters in parentheses in the "Additional Regulations" column in the MU-RSC Land Use Table are described in the MU-RSC Additional Regulations Table below. In the MU-RSC Land Use Table, where a use regulation or a letter in parentheses is opposite a use classification heading, the referenced regulations shall apply to all use classifications under the heading.

Land uses not listed (indicated by strikeout) are not permitted.

B. Uses and use classifications listed in the MU-RSC Land Use Table below are defined in WCMC § 10-2.1.403. The use classifications listed below describe uses having similar characteristics, but the table does not list every use or activity that may appropriately be within the listed use or classification. The Community Development Director shall determine whether a specific use shall be deemed to be of the same general nature as one of the uses or use classifications listed below, in which case it shall be treated the same as the listed use or use classification. The Community Development Director may determine that a specific use shall not be deemed to be within a use classification, whether or not named within the classification, if its characteristics are substantially incompatible with those typical of uses named within the classification. The Community Development Director's decision may be appealed to the Planning Commission in accordance with Part IV, Article 5 of this chapter. Any use that is not deemed to be of the same general nature as one of the uses or use classifications listed below may be incorporated in the zoning regulations by a Zoning Ordinance text amendment, as provided in Part IV, Article 13 of this chapter, Amendments (Rezoning).

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| A. Residential Use Classifications | | (A)(B)(C)(D)(E) |
| ~~1. Adult Day Care Home~~ | | |
| 2. Congregate Living Facility | L(22) | |
| ~~3. Family Day Care Home~~ | | |
| ~~a. *Small Family Day Care Home*~~ | | |
| ~~b. *Large Family Day Care Home*~~ | | |
| 4. Group Residential | L(22) | |
| 5. Multiple Family Residential | L(22) | |
| 6. Residential Care Home | L(22) | |
| ~~7. Accessory Dwelling Units~~ | | |
| ~~*a. Accessory Dwelling Unit*~~ | | |
| ~~b. *Junior Accessory Dwelling Unit*~~ | | |
| ~~8. Single Family Residential~~ | | |
| 9. Supportive Housing | L(19), L(20), L(22) | |
| 10. Transitional Housing | L(19), L(22) | |
| B. Commercial Use Classifications | | (G)(H) |
| ~~1. Ambulance Services~~ | | |
| 2. Animal Sales and Services | See rows regarding subcategories of this use below | |
| a. *Animal Hospital/Veterinary Services* | L(2) | |
| b. *Animal: Retail Sales and Grooming* | L(3) | |
| ~~c. *Horse Stables*~~ | | |
| ~~d. *Kennels*~~ | | |
| 3. Artist Studios | L(4) | |

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| 4. Banks and Savings and Loans | See rows regarding subcategories of this use below | |
| a. *Banks and Savings and Loans* | L(4) | |
| ~~(1) *With Drive up Services*~~ | | |
| (2) *With Automated Teller Machines* | L(3) | |
| 5. Catering Services | L(6) | |
| ~~6. Commercial Cannabis Business~~ | | |
| ~~a. Commercial Cannabis Cultivation~~ | | |
| ~~b. Commercial Cannabis Distribution~~ | | |
| ~~c. Commercial Cannabis Manufacturing~~ | | |
| ~~d. Commercial Cannabis Retail Dispensary~~ | | |
| ~~(1) With Cannabis Delivery~~ | | |
| ~~e. Nonstorefront Delivery Only Operation~~ | | |
| ~~f. Commercial Cannabis Testing Laboratory~~ | | |
| ~~7. Communication Facilities~~ | | |
| ~~8. Custom Manufacturing~~ | | |
| 9. Eating and/or Drinking Establishments | See rows regarding subcategories of this use below | |
| a. *Eating and/or Drinking Establishments* | L(6) | |
| (1) *With Wine and Beer Service Ending at or Before 11:00 p.m.* | L(7) | |
| (2) *With Wine and Beer Service Ending After 11:00 p.m.* | L(7) | |

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| (3) *With Full Alcoholic Beverage Service Ending at or Before 11:00 p.m.* | L(7) | |
| (4) *With Full Alcoholic Beverage Service Ending After 11:00 p.m.* | L(7) | |
| (5) *With Live Entertainment* | L(6) | |
| (6) *With Dancing* | L(6) | |
| (7) *With Take-out Services* | L(6) | |
| ~~(a) *Drive-up*~~ | | |
| (8) *With Permanent Outdoor Seating* | L(8) | |
| (9) *With Off-site Distribution* | U | (J) |
| (a) *Micro-breweries* | U | (J) |
| 10. Food and Beverage Sales | See rows regarding subcategories of this use below | |
| a. *Food and Beverage Sales* | L(9) | |
| b. *Convenience Markets* | L(9) | |
| ~~(1) *With Gasoline Sales*~~ | | |
| c. *Specialty Food Shops* | L(9) | |
| (1) *With Off-site Distribution* | U | (J) |
| ~~11. Funeral and Interment Services~~ | | |
| 12. Health Clubs | L(2) | |
| 13. Home Improvement Sales and Services | L(2) | |
| ~~14. Horticultural Establishments~~ | | |
| ~~15. Lumber and Building Material Yards~~ | | |
| 16. Maintenance and Repair Services/Small Equipment | L(3) | |
| 17. Mini Storage | P | |

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| ~~18. Nurseries~~ | | |
| 19. Offices, Business and Professional | See rows regarding subcategories of this use below | |
| a. *Offices, Business and Professional* | L(4) | |
| b. *Offices, Medical* | L(4) | |
| 20. Parking, Commercial Facilities | L(23) | (K) |
| 21. Pawn Shops | L(3) | |
| 22. Personal Improvement Services | L(3) | |
| 23. Personal Services | L(4) | |
| 24. Recreation and Entertainment, Commercial | See rows regarding subcategories of this use below | |
| a. *Within a Building* | P | |
| b. *Outdoor Facilities* | P | |
| ~~25. Recreational Vehicle Parks~~ | | |
| ~~26. Research and Development Services~~ | | |
| 27. Retail Sales/Rentals | L(4), L(23) | |
| 28. Vehicle/Equipment Sales and Services | See rows regarding subcategories of this use below | |
| a. *Automobile Rental and Leasing* | L(3), L(23) | (K) |
| b. *Automobile Sales/New and Used* | L(3), L(23) | (K) |
| c. *Automobile Washing* | L(23) | (K) |
| ~~d. *Automobile Wrecking*~~ | | |
| ~~e. *Service Stations*~~ | | |

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| ~~(1) *With Automobile Washing*~~ | | |
| ~~f. *Vehicle/Equipment Repair*~~ | | |
| ~~(1) *Limited Vehicle Service*~~ | | |
| g. *Vehicle/Equipment Sales and Rentals* | L(3), L(23) | (K) |
| h. *Vehicle Storage* | L(23) | (K) |
| 28. Visitor Accommodations | See rows regarding subcategories of this use below | |
| ~~a. *Bed and Breakfast Inns*~~ | | |
| ~~b. *Hotels*~~ | | |
| ~~c. *Motels*~~ | | |
| C. Industrial Use Classifications | | |
| ~~1. General Industry~~ | | |
| ~~2. Limited Industry~~ | | |
| ~~3. Research Development Industry~~ | | |
| ~~4. Wholesaling, Distribution and Storage~~ | | |
| D. Agricultural Use Classifications | | |
| ~~1. Animal Husbandry~~ | | |
| ~~2. Crop Production~~ | | |
| E. Community Facility Use Classifications | | (G) |
| 1. Adult Day Care Facilities | L(4) | |
| 2. Child Day Care Facilities (Day Care Center) | L(4) | (F) |
| 3. Clubs and Lodges | L(4) | |
| ~~4. Colleges, Public or Private~~ | | |

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| 5. Cultural Institutions | See rows regarding subcategories of this use below | |
| a. *Cultural Institutions* | L(4) | |
| b. *Natural History/Science Museums* | L(4) | |
| 6. Emergency Medical Care/No Inpatient | P | |
| 7. Government Offices | L(4) | |
| ~~8. Hazardous Waste Management Facilities~~ | | |
| 9. Heliports | L(24) | |
| ~~10. Hospitals~~ | | |
| ~~a. *Acute Care*~~ | | |
| ~~b. *Other*~~ | | |
| ~~11. Housing for the Homeless/Emergency Shelters~~ | | |
| ~~12. Low Barrier Navigation Center~~ | | |
| ~~13. Maintenance and Service Facilities~~ | | |
| 14. Park and Recreation Facilities | P | |
| 15. Public Parking Facilities | U | (K) |
| 16. Public Safety Facilities | L(4) | |
| ~~17. Public Transit Terminals~~ | | |
| 18. Recycling Facilities | See rows regarding subcategories of this use below | |
| a. *Collection Facilities* | | |
| (1) *Reverse Vending Machine Facilities* | L(10) | (L) |
| (2) *Small Collection Facilities* | L(10) | (L) |

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| ~~(3) *Large Collection Facilities*~~ | | |
| ~~b. *Processing Facilities*~~ | | |
| 19. Religious Assembly | L(4) | |
| 20. Residential Care Facilities for the Elderly (RCFEs), including Continuing Care Retirement Communities (CCRCs) | L(11), L(22) | |
| 21. Schools, Public or Private | L(3) | |
| 22. Skilled Nursing Facilities | L(4), L(22) | |
| ~~23. Utilities, Major~~ | | |
| 24. Utilities, Minor | P | |
| F. Accessory Uses | | (G) |
| ~~1. Accessory Living Quarters~~ | | |
| 2. Accessory Structure | L(13) | |
| 3. Accessory Use | L(14) | |
| ~~a. *Garage Sales*~~ | | |
| b. *Home Occupations* | L(15) | (M) |
| c. *Personal Cannabis Cultivation* | L(18) | (N) |
| 4. Drone vertiports/droneports and drone landing pads. | L(24) | |
| G. Temporary Uses | | (G)(H) |
| 1. Temporary Arts and Crafts Shows, Outdoor | L(16) | |
| 2. Temporary Christmas Tree Sales | L(16) | |
| 3. Temporary Civic/Community Events | L(16) | |
| 4. Temporary Farmers Markets | L(16) | |
| 5. Temporary Live Entertainment Events | L(16) | |
| 6. Temporary Outdoor Seating for Eating and Drinking Establishments | L(16) | |
| 7. Temporary Pumpkin Sales | L(16) | |

| MU-RSC LAND USE TABLE | | |
|---|---|---|
| **LAND USE** | **USE REGULATIONS** | **ADDITIONAL REGULATIONS** |
| 8. Temporary Retail Sales, Outdoor | L(16) | |
| 9. Temporary Street Fairs | L(16) | |
| 10. Temporary Swap Meets, Non-Recurring | L(16) | |
| 11. Temporary Swap Meets, Recurring | L(16) | |
| 12. Temporary Vendor-Carts | L(17) | |

| MU-RSC USE REGULATIONS TABLE | |
|---|---|
| L(1) | *L(1) is not used.* |
| L(2) | Conditionally permitted in the garage/basement, on the lower two floors, and on the top floor of a completely enclosed multistory building; otherwise not permitted. |
| L(3) | Permitted in the garage/basement, on the lower two floors, and on the top floor of a multistory building; otherwise not permitted. |
| L(4) | Permitted in the garage/basement. on the lower two floors, and on the top floor of a multistory building; conditionally permitted on other floors. In approving a Conditional Use Permit, the Planning Commission shall find that the proposed use is compatible with residential uses in the same building, and will not negatively impact existing or future residential uses in the same building or surrounding area with respect to noise, odor, traffic, privacy, or other factors. |
| L(5) | *L(5) is not used.* |
| L(6) | Permitted in the garage/basement, on the lower two floors, and on the top floor of a multistory building subject to review and approval of the Design Review Authority pursuant to Part IV, Article 12, **Design Review**; otherwise not permitted. In granting design review approval, the Design Review Authority shall find that:<br>a. The ventilation equipment has been designed and located to mitigate the impact of objectionable noise and odor on existing and future residential uses in the surrounding area.<br>b. The garbage collection facilities have been designed and located to mitigate the impact of objectionable noise and odor on existing and future residential uses in the surrounding area, including that resulting from garbage pickup. |

| MU-RSC USE REGULATIONS TABLE | |
|---|---|
| L(7) | Permitted upon approval of an Administrative Use Permit pursuant to Part III, Article 12, **Alcoholic Beverage Sales**. |
| L(8) | Outdoor seating which requires the construction of permanent structures or alterations to existing buildings shall be subject to Design Review (see Part IV, Article 12, **Design Review**). Outdoor seating that does not require permanent structures or alterations to existing buildings does not require Design Review. A Temporary Encroachment Permit is required for the temporary use of the public right-of-way for the placement of tables and chairs. |
| L(9) | Permitted in the garage/basement, on the lower two floors, and on the top floor of a multistory building except that facilities which include the sale of alcoholic beverages (including beer and wine) or tobacco products are conditionally permitted; otherwise not permitted. In approving a Conditional Use Permit, the Planning Commission shall find that:<br>a) The proposed use will not cause adverse noise, odor, and litter impacts.<br>b) The proposed use (including hours of operation) will be compatible with existing or future residential uses in the surrounding area. |
| L(10) | Permitted in a Convenience Zone (as defined by Section **10-2.1.303, Definitions**) subject to the approval of the Community Development Director. |
| L(11) | For RCFEs (including CCRCs), the required parking and all other development regulations shall be the same as are required by Sections 10-2.2.2403 and 10-2.2.2404 for Residential Use Classifications, subject to Note L(23) below and Note (K) in the MU-RSC Additional Use Regulations Table below |
| L(12) | *L(12) is not used.* |
| L(13) | Accessory structures are permitted subject to Section **10-2.2.2403, Property Development Regulations**. |
| L(14) | See the use regulations for the primary use classification. |
| L(15) | Home Occupations are permitted subject to the approval of a Home Occupation Permit pursuant to Section **10-2.3.107, Home Occupations**. |
| L(16) | Permitted subject to the approval of a Temporary Activity Permit pursuant to Section **10-2.3.118, Temporary Activity Permits**. |
| L(17) | Permitted if they are operating under the same business license as an immediate adjacent eating and drinking establishment or immediate adjacent retail establishment, and are not within the public right-of-way. |

| MU-RSC USE REGULATIONS TABLE | |
|---|---|
| L(18) | Personal cannabis cultivation is permitted subject to the regulations outlined by Article 14 of Part III of the Zoning Ordinance. |
| L(19) | Supportive and transitional housing are subject only to those requirements and restrictions that apply to the residential use classification under which they operate (e.g., multiple-family residential, single-family residential, residential care home, etc.). |
| L(20) | Permitted by right when meeting the requirements of Section 65651 of the California Government Code and all objective standards applicable to multiple-family residential uses. |
| L(21) | *L(21) is not used.* |
| L(22) | Uses that allow persons to reside in the use are limited to those serving primarily persons 55 years of age or older. Allowing all such uses as the primary use implements and conforms to the provisions of the General Plan, the North Downtown Specific Plan and WCMC § 10-2.2.2401 requiring that on land designated MU-R and on land zoned MU-RSC, residential must be the primary use, even though such uses may be classified under the Community Facility Use Classification for other purposes. Uses that allow persons to reside in the use include but are not limited to all uses under heading "A. Residential Use Classifications" in the MU-RSC Land Use Table above, residential care facilities for the elderly as defined in section 1569.2 of the California Health and Safety Code and continuing care retirement communities as defined in section 1771 of the California Health and Safety Code. |
| L(23) | Parking and storage of vehicles, as a stand-alone land use separate from the land use served by the parking, is a permitted use without the need for a use permit or minor use permit, provided it is limited to the following:<br>(a) parking and storage of vehicle inventory by one or more auto dealers.<br>(b) short-term and long-term parking to the public for a fee. This includes parking of vehicles operated as part of a ride-sharing service, transportation network company, and for independent drivers using personal vehicles to provide prearranged, for-hire transportation.<br>(c) rental or leasing of automobiles including storage and incidental maintenance. This classification includes parking and storage for taxi and limousine services, as well as for companies that rent vehicles to the public.<br>(d) washing, waxing or cleaning of automobiles or similar light vehicles.<br>(e) parking and storage of motor vehicles that are operated as part of a regional fleet by a public agency, or private car sharing company or organization, that provides hourly and daily rental service. This includes parking and storage for car-sharing, as referenced in the North Downtown Specific Plan. |

| MU-RSC USE REGULATIONS TABLE | |
|---|---|
| | (f) parking and storage of bicycles for bike share services and bike-sharing, as referenced in the North Downtown Specific Plan.<br>(g) all other types of parking, including shared parking, encouraged or permitted by the North Downtown Specific Plan.<br>See note (K) in the MU-RSC Additional Use Regulations Table. Additional parking uses, as stand-alone land uses separate from the land use served by the parking, are prohibited. |
| L(24) | Pads and facilities enabling takeoffs and landings by helicopters are not permitted. However, places for drones to land, takeoff, drop off, and pick up may be installed on the ground floor or the roof as a permitted use, without the need for a use permit or administrative use permit. |

| MU-RSC ADDITIONAL USE REGULATIONS TABLE | |
|---|---|
| (A) | See Section 10-2.3.103, **Accessory Structures**. |
| (B) | See Section 10-2.3.107, **Home Occupations**. |
| (C) | See Section 10-2.3.108, **Animals**. |
| (D) | See Part III, Article 9, **Inclusionary Housing**. |
| (E) | See Part III, Article 10, **Density Bonus Ordinance**. |
| (F) | See Part III, Article 6, **Child Day Care Facilities**. |
| (G) | Consistent with the General Plan, residential uses must be the primary use. |
| (H) | See Section 10-2.3.121, **Regulations for Outdoor Sales, Service, Display**. |
| (I) | *(I) is not used.* |
| (J) | See Section 10-2.3.123, **Offsite Distribution for Eating and Drinking Establishments and Specialty Food Shops**. |
| (K) | See Part III, Article 2, **Off-Street Parking and Loading Regulations,** provided, however, that in the MU-RSC district, the following is permitted without the need for a use permit or administrative use permit:<br>(a) parking on a parcel within the MU-RSC district for any use that is located anywhere within the same block that is surrounded by public streets as the MU-RSC-zoned parcel, provided the use served by the parking is permitted or conditionally permitted anywhere within that block.<br>(b) shared parking is permitted pursuant to the requirements of Government Code section 65863.1 |

| MU-RSC ADDITIONAL USE REGULATIONS TABLE | |
|---|---|
| | (c) attendant-assisted parking, as described in the North Downtown Specific Plan, is permitted, and attendant assisted parking can include allowing vehicles to be parked along parking lot or garage drive aisles.<br>(d) tandem parking, as described in the North Downtown Specific Plan, is permitted.<br>(e) mechanized parking, as described in the North Downtown Specific Plan, is permitted<br>(f) Automatic Parking Space Counting Systems (APSCS), as described in the North Downtown Specific Plan, are permitted.<br>See note L(23) above. |
| (L) | See Part III, Article 7, **Recycling Facilities**. |
| (M) | See Section 10-2.3.107, **Home Occupations**. |
| (N) | See Part III, Article 14, **Personal and Commercial Cannabis Activities.** |

**10-2.2.2403 Property Development Regulations.**

The following MU-RSC Property Development Regulations Table prescribes development regulations for the Mixed Use – Residential Senior & Commercial District. The symbol "NA" indicates there is no restriction for that particular development regulation or that regulation is not applicable in this District. Numbers in parentheses refer to the regulations in the MU-RSC Additional Development Regulations Table below. If the Development Regulations column in this MU-RSC Property Development Regulations Table is blank, the development regulation is referenced in the "Additional Regulations" column.

| MU-RSC PROPERTY DEVELOPMENT REGULATIONS TABLE | | |
|---|---|---|
| **CLASSIFICATION** | **DEVELOPMENT REGULATIONS** | **ADDITIONAL REGULATIONS** |
| A. Minimum Lot Area | 10,000 sq. ft. | D(2) |
| B. Minimum Lot Width | 80 feet | D(2) |
| C. Minimum Lot Frontage | 80 feet | D(2) |
| D. Minimum Lot Depth | 100 feet | D(1), D(2) |
| E. Minimum Setbacks | | D(2), D(3) |

| MU-RSC PROPERTY DEVELOPMENT REGULATIONS TABLE | | |
|---|---|---|
| **CLASSIFICATION** | **DEVELOPMENT REGULATIONS** | **ADDITIONAL REGULATIONS** |
| 1. Front | | D(2), D(4) |
| 2. Side | | D(2), D(5) |
| 3. Corner Side | | D(2), D(4) |
| 4. Rear | | D(2), D(5) |
| F. Maximum Height | | D(6) |
| G. Density | 1 dwelling unit per 425 sq. ft. of net lot area | D(15) |
| H. Maximum Lot Coverage | NA | |
| I. Maximum Floor Area Ratio | | D(2), D(7) |
| J. Minimum Ground Floor Height | | D(8) |
| K. Minimum Ground Floor Depth | | D(2), D(9) |
| L. Courts | See **Section 10-2.3.127.** | |
| M. Design Review | See **Part IV, Article 12** | D(10) |
| N. Landscaping | See **Part III, Article 11.** | D(11) |
| O. Storage Space for Residential Units | | D(12) |
| P. Fences and Walls | See **Section 10-2.3.104.** | |
| Q. Antennas | See **Section 10-2.3.120.** | |
| R. Non-Conforming Conditions | See **Part III, Article 3.** | |
| S. Elevators | See **Section 10-2.3.124.** | |
| T. Recycling Facilities | See **Part III, Article 7.** | |
| U. Parking and Loading | See **Part III, Article 2.** | D(13) D(14) |
| V. Signs | See **Title 10, Chapter 8.** | |

| MU-RSC PROPERTY DEVELOPMENT REGULATIONS TABLE | | |
|---|---|---|
| **CLASSIFICATION** | **DEVELOPMENT REGULATIONS** | **ADDITIONAL REGULATIONS** |
| W. Preservation of Trees | See **Title 3, Chapter 8.** | |
| X. Hillside Performance Standards | See **Part III, Article 4.** | |
| Y. Stormwater Control | See **Title 9, Chapter 16.** | |

| MU-RSC ADDITIONAL DEVELOPMENT REGULATIONS TABLE | |
|---|---|
| D(1) | Any existing lot having a depth of less than 100 feet may be developed pursuant to all provisions of this chapter. |
| D(2) | In computing lot area, setbacks, front yards, side yards, lot width, lot depth and lot frontage, to the extent required by this Chapter, **only** "lot net area" as defined in WCMC, §10-2.1.303, paragraph 122 shall be included.<br><br>Setbacks shall apply only to lot lines adjoining and along public street right of ways and not to lot lines in the interior of a block that is surrounded by public streets.<br><br>Minimum and maximum setbacks shall be provided as specified by the North Downtown Specific Plan. |
| D(3) | Refer to the Walnut Creek Zoning Map, Future Street Lines, Overlay Zones (Sheet 2). |
| D(4) | Minimum front and corner side setbacks shall be provided as specified by the North Downtown Specific Plan. |
| D(5) | For any lot lines to which setbacks apply pursuant to note D(2), which are side or rear lot lines, no side or rear setbacks are required; provided, however, that for portions of buildings containing uses listed under the heading "A. Residential Use Classifications" in the MU-RSC Land Use Table in section 10-2.2.2402 above, see **Section 10-2.3.127, Courts.** |
| D(6) | Refer to Figure 4.1 (Base Intensity and Building Height) and Figure 4.3 (FAR and Height Bonus Potential with Provision of Community Benefits) of the North Downtown Specific Plan. Where identified in Figure 4.3, the Planning |

| MU-RSC ADDITIONAL DEVELOPMENT REGULATIONS TABLE | |
|---|---|
| | Commission or City Council may permit additional building height upon approval of a community benefit agreement pursuant to Part IV, Article 17, Community Benefit Agreements. |
| D(7) | Refer to Figure 4.1 (Base Intensity and Building Height) and Figure 4.3 (FAR and Height Bonus Potential with Provision of Community Benefits) of the North Downtown Specific Plan. Where identified in Figure 4.3, the Planning Commission or City Council may permit additional FAR upon approval of a community benefit agreement pursuant to Part IV, Article 17, Community Benefit Agreements. |
| D(8) | The ground floor height, as measured from the surface of the ground floor to the surface of the floor directly above it, shall be a minimum of 18 feet for all uses other than the uses listed under the heading "A. Residential Use Classifications" in the MU-RSC Land Use Table in section 10-2.2.2402 above; otherwise 12 feet. |
| D(9) | The minimum depth of all ground floor tenant spaces abutting the street for all uses shall be the lesser of the following:<br>a) Fifty feet; or<br>b) Ten feet less than the lot depth;<br>provided, however, that this minimum depth requirement shall not apply to uses listed under the heading "A. Residential Use Classifications" in the MU-RSC Land Use Table in section 10-2.2.2402 above.<br><br>Notwithstanding the foregoing, the Design Review Authority may allow exceptions to the dimensional standards and overlap restrictions for yards and courts which are specified above. In granting such Design Review approval, the Design Review Authority shall find that the interior(s) of the dwelling unit(s) will be provided with visual access to open sky, access to direct or indirect sunlight, and visual privacy, all equal to or better than what would otherwise be provided through compliance with the standard requirements. |
| D(10) | For new buildings or additions which include ground floor area intended uses other than the uses listed under the heading "A. Residential Use Classifications" in the MU-RSC Land Use Table in section 10-2.2.2402 above, in granting design review approval the Design Review Authority pursuant to Part IV, Article 12, **Design Review**, shall find that adequate ventilation features (such as internal vertical chases to the roof) are provided in order to accommodate restaurants and other similar uses in the future. |
| D(11) | A minimum of ten percent (10%) of the "lot net area" as defined in WCMC § 10-2.1.303, paragraph 122, shall be landscaped. Front and corner side |

| MU-RSC ADDITIONAL DEVELOPMENT REGULATIONS TABLE | |
|---|---|
| | landscaping requirements count toward the minimum site landscape area requirement. Landscaped areas shall consist of at least fifty percent (50%) live plant material, and any remaining area shall be rock, gravel, pebbles, stones, mulch or other natural, non-living material. Where multiple parcels are developed, the minimum landscaping applies across the project as a whole. Where provided front and/or corner side setbacks are more than five (5) feet, the corresponding yards shall be landscaped as follows:<br>i. For ground-floor commercial uses, a minimum of ten percent (10%) of the yard shall be landscaped.<br>ii. For all other ground floor uses, a minimum of thirty percent (30%) of the yard shall be landscaped. |
| D(12) | Each residential unit shall have at least two hundred (200) cubic feet of enclosed, weather-proofed and lockable private storage space in addition to guest, linen, pantry and clothes closets customarily provided. Such space shall be provided in any location within the same building (including the garage/basement) as the residential unit, or in any location approved by the Community Development Department that is not in the same building as the residential unit, but shall not be divided into two (2) or more locations for any single residential unit. |
| D(13) | Parking spaces for the uses listed under the heading "A. Residential Use Classifications" in the MU-RSC Land Use Table in section 10-2.2.2402 above shall be separated from parking spaces for all other uses in a manner approved by the Transportation Administrator by means of signs, gates, barriers, and/or markings. See note L(23) in the Use Regulations Table and note (K) in the MU-RSC Additional Use Regulations Table in Section 10-2.2.2402 above. |
| D(14) | No surface, ground level, or above ground parking spaces shall be located within twenty (20) feet of a street line. |
| D(15) | Density shall be calculated based on "net lot area" as defined in in WCMC, §10-2.1.303, paragraph 122. |

**10-2.2.2404 MU-RSC Site Design Standards.**

A. The site design may include new or revised publicly accessible connections, shared-use paths, mid-block shared use paths, and/or pedestrian pass-throughs, as referenced in the North Downtown Specific Plan.

B. The site design may include new or revised, public or private, vehicle, bicycle and/or pedestrian access routes for any parcel zoned MU-RSC, which access route(s)

extend through any other parcel within the same block that is surrounded by public streets, regardless of the zoning district for that other parcel.

C. No school site dedication is required.

D. All parking standards are subject to state law parking provisions including but not limited to Government Code sections 65863.1 and 65863.2.

**10-2.2.2405 Gross Floor Area.**

Gross Floor Area shall mean the total area of all floors in a building as measured to the outside surfaces of exterior walls or to the center line of common walls, excluding crawl spaces, garages, carports, breezeways, attics without floors, and open porches, balconies and terraces. On land zoned MU-RSC, any references to gross floor area that cite or refer to WCMC § 10-2.1.303 shall instead be deemed to cite or refer to this section.

**10-2.2.2406 Floor Area Ratio (FAR).**

Floor Area Ratio and FAR shall mean the ratio of developed gross floor area to net lot area, both expressed in square feet. On land zoned MU-RSC, any references to floor area ratio or FAR that cite or refer to any other definition of floor area ratio or FAR shall instead be deemed to cite or refer to this section. As used in this section, "net lot area" shall mean "lot net area" as defined in WCMC § 10-2.1.303, paragraph 122.

**10-2.2.2407 Lot Coverage.**

There are no minimum or maximum lot coverage requirements. As used in this section, "lot coverage" means the total footprint of all structures, including projecting balconies, stairways, porches, patio covers and decking (which exceeds eighteen (18) inches in height). Also included are accessory structures such as detached garages or carports, tool sheds, covered pool equipment units, etc. Roof overhangs up to four (4) feet from the building wall are exempted from coverage calculations. Portions of roof overhangs which exceed four (4) feet are counted towards coverage. Swimming pools and spas do not count towards lot coverage. On land zoned MU-RSC, any references to lot coverage that cite or refer to any other definition of lot coverage shall instead be deemed to cite or refer to this section.

**10-2.2.2408 Lot Net Area.**

The phrases "net area," "net acres," "net lot area," and "net land area" shall mean "lot net area" as defined in WCMC, §10-2.1.303, paragraph 122.

**10-2.2.2409 Private Residential Outdoor Space.**

A. Definition and Types. For the purposes of this section, private residential outdoor space is defined as outdoor space that is usable and accessible only to building residents and their visitors. Private outdoor space may be provided as a combination of "personal" and "common" outdoor spaces, defined as follows:

1. "Common" outdoor space areas provide shared access to outdoor spaces for all building residents. These include:

a. Courtyards.
b. Gardens.
c. Play areas
d. Outdoor picnic areas.
e. Recreation amenities.
f. Rooftop amenities.

3. "Personal" outdoor space areas are intended for private use for each dwelling unit and are directly accessible only from the unit which they serve. They shall not be used to satisfy any minimum requirements for sustainable stormwater facilities, storage square footage, unusable buffer space, or other unusable outdoor areas. Private outdoor spaces include:

a. Balconies.
b. Private gardens.
c. Private yards.
d. Terraces
e. Decks.
f. Porches.

B. Provision of Private Outdoor Spaces. Subject to subdivision C below, a minimum amount of private outdoor space shall be provided for multifamily residential and residential mixed-use projects as identified in the rate expressed in the table below and applied to the development as a whole. This can be provided as a combination of personal and common outdoor space, or as otherwise specified below. For example, a project of ten (10) units in the Core Area would require one thousand five hundred (1,500) square feet of private outdoor space total (10 units X 150 square feet), with five (5) units requiring personal outdoor space (e.g., five upper level units X 40 square feet = 200 sf personal) and the remaining one thousand three hundred (1,300) square feet provided as either common and/or personal.

| Required Private Outdoor Space for Multifamily Residential | |
|---|---|
| Space/unit (common + personal) | 150 SF |
| Personal outdoor space minimums per unit | Minimum 50% of units:<br>Ground floor: 80 SF<br>Upper floors: 40 SF |

C. Applicability to Assisted Living and Memory Care Units. Regardless of whether residential or non-residential uses are developed, no private or personal open space is required for any assisted living unit or memory care unit, but such units shall be counted in determining the amount of "Space/unit (common + personal)" and the "Minimum 50% of unit" requirements referenced in the table in subsection B above.

END OF THE FULL TEXT OF THE INITIATIVE MEASURE

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